SECTION 13

RESIDENTIAL R9 ZONE

13.1 GENERAL PURPOSE OF THE R9 ZONE

The Zone provides for and regulates a wide range of medium and higher density residential developments in the form of apartment buildings.

13.2 PERMITTED USES

No person shall erect or use any building or structure, or use any land or cause or permit any building or structure to be erected or used, or cause or permit any land to be used, in any Residential R9 Zone variation for any use other than the following uses:

a) Apartment buildings;
b) Lodging house class 2; (Z.-1-93172)
c) Senior citizens apartment buildings;
d) Handicapped persons apartment buildings
e) Continuum-of-care facilities. (Z.-1-01915)

13.3 REGULATIONS

No person shall erect or use any building or structure, or use any land or cause or permit any building or structure to be erected or used, or cause or permit any land to be used, in any Residential R9 Zone variation except in conformity with the regulations as set out below and in Table 13.3 or as set out on the Zoning Maps.

1) DENSITY (deleted by Z.-1-96447)

13.4 SPECIAL PROVISIONS

The following zone variations apply to unique or existing situations and are not the standard R9 Zone variations. If a regulation or use is not specified, the list of permitted uses and/or the regulations of Section 13.2 and/or Section 13.3 shall apply.

a) R9-1 Zone Variation

R9-1(1)

a) Regulations:

Notwithstanding any provision of Section 4.19 or Section 13.3 to the contrary, the following provisions shall apply:

i)	Front Yard Depth (Minimum):	7.1 metres
ii)	East Interior Side Yard Depth (Minimum):	11.2 metres
iii)	Density (units per hectare maximum)	107 units/ha
iv)	Parking	1.16 spaces per unit
v)	Density Bonus	not applicable

(Z.-1-081695 approved January 21, 2008)

R9-1(2) 8 Fairview Court and 770 Whetter Avenue

a) Regulations:

i)	Setback from a Railway Right-of-Way (Minimum)	15 metres

ii) Setback from a Railway Right-of-Way means the shortest horizontal distance between the nearest boundary of a railway right-of-way and the nearest part of any residential building

iii) Sight triangle setback from the point of intersection of the centre line of both the railway and the road — 0.0 metres

Z.-1-122144 – Oct 30, 2012

R9-1(3) 1047 – 1055 Dearness Drive

a) Regulations:

i) Exterior Side Yard Depth (Minimum): — 4.0 metres (13.1 feet)

ii) Height (Maximum):
the lesser of 18.0 metres, or 4 storeys, plus the height required for common access to a rooftop terrace (Z.-1-212956)

R9-1(4) 2009 Wharncliffe Road South

a) Additional permitted uses, limited to the first floor of an apartment building

i) Animal Clinic
ii) Bake shops
iii) Clinics
iv) Convenience service establishments
v) Convenience Store
vi) Financial institutions
vii) Food stores
viii) Laundromats
ix) Medical/dental offices
x) Offices
xi) Personal service establishments
xii) Restaurants
xiii) Retail stores
xiv) Studios

b) Regulations

i) Front Yard Depth (Minimum) — 1.95 metres (6.4 feet)

ii) Exterior Side Yard Depth (Minimum) — 1.4 metres (4.6 feet)

iii) Height (Maximum) (Z.-1-223047) — the lesser of 18.0 metres, or 4 storeys

R9-1(5) 3563 Bostwick Road – Block 3

a) Additional Permitted Uses

i) Stacked townhouses; and

ii) Townhouses

b) Regulations

i) Front and Exterior Yard Depth (Minimum) - 3.0 metres

ii) Rear Yard Depth, abutting a public street (Minimum) - 3.0 metres

iii) Interior Site Yard Depth (Minimum) - 0.25 metres for every 1.0 metres of height, not in no case less than 4.5 metres.

iv) Density (Minimum) - 30 units per hectare

v) Density (Maximum) - 75 units per hectare

vi) Height (Minimum) - the greater of 7.5 metres or 2 storeys

vii) Height (Maximum) - the lesser of 21 metres or 6 storeys (Z.-1-253388)

b) R9-2 Zone Variation

c) R9-3 Zone Variation

R9-3(1)

Repealed by By-law No. Z.-1-93202

R9-3(2) 35 and 41 Capulet Lane

a) Regulations

i)	Setbacks from a Railway Right-of-Way (Minimum)	60 metres (196.9 feet).

ii) **Setback from Railway Right-of-Way** means the shortest horizontal distance between the nearest boundary of a railway right-of-way and the nearest part of any residential building.
(O.M.B. File #R 890025/R 910387 - Appeal #9001-0 June 4, 1993)

R9-3(3)

a) Regulations:

i) Dwelling units are to be contained within buildings, including minor additions, on lots existing on May 11, 1992;

ii)	Average Dwelling Unit Floor Area (Minimum)	65 square metres (700 square feet).
iii)	Landscaped Open Space (Minimum)	25%
iv)	Front Yard Parking Area Setback (Minimum)	0.0 metre
v)	Interior Side Yard Parking Area Setback (Minimum)	0.0 metre
vi)	Rear Yard and Interior Side Yard Accessory Building Setback (Minimum) (Z.-1-93202)	0.0 metre

R9-3 (4)

a) Regulations

i)	Setback from	15 metres

	Railway Right-of-Way with a Safety and Noise Berm (Minimum)	(49.2 feet)
ii)	Density Bonus (Maximum)	25%
iii)	Density Bonus for underground parking (Z.-1-94266)	None

R9-3(5)

a) Regulations

i)	Lot Coverage (Maximum)	60%
ii)	Floor Area Ratio (Maximum)	1.0:1
iii)	Front, Rear, Interior and Exterior Yard Depth (Minimum)	3 metres (9.8 feet) plus 1 metre for every 3 metres (9.8 feet) of building height or fraction thereof above 3 metres (9.8 feet).

(O.M.B. File #R 910387 - Appeal #9003-6 May 9, 1994)

R9-3(6)

(added to By-law by Z.-1-00743) (deleted by Z.-1-00794)

R9-3(7)

a) Additional Permitted Use:

i) Stacked townhouse.

b) Regulations:

i)	Interior Side Yard (Minimum) East Side Only:	3 metres (10 feet).
ii)	Front Yard Depth (Minimum)	1. 5 metres (5 feet)
iii)	Parking Requirement	1.3 cars per unit
iv)	Landscaped Open Space (Minimum)	28.2 %
v)	Lot Coverage (Maximum) (Z.-1-00794)	31.4 %

R9-3(8)

a) Regulations:

i)	Setback from a Railway Right-of-Way (Minimum)	30 metres (98 feet)

ii) **Setback from a Railway Right-of-Way** means the shortest horizontal distance between the nearest boundary of a railway right-of-way and nearest part of any residential building.

(Z.-1-00799)

R9-3(9)

a) Regulations:

i)	Lot Coverage (Maximum)	70%

(Schedule "A31-B" to the Order of the O.M.B. made on July 29th, 1992. O.M.B. File #0910043/R910387, A31 Referral #66, Appeal #2019 (amending order issue date: June 20, 1997)

R9-3(10) 83, 85 and 89 Ridout Street South

a) Regulations

i)	Interior Side Yard (South) (Minimum)	4.0 meters (13 feet)
ii)	Interior Side Yard (North) (Minimum)	5.5 meters (18 feet)
iii)	Front yard setback (Minimum)	2.7meters (8.1feet)
iv)	Lot coverage (Maximum)	31%
v)	Density (Maximum) (Z.-1-142315)	85 units per hectare

R9-3(11) NUMBER NOT USED

R9-3(12) 609 William Street

a) Regulations

i)	Lot Frontage (William Street) (m) Minimum	14.7 metres (48.23 feet)
ii)	Interior Side Yard Depth North (m) Minimum	0.0 metres (0.0 feet)
iii)	Landscaped Open Space Associated with Existing Building (%) Minimum	17.5 percent
iv)	Off-street Parking Associated with parking Existing Building (Minimum)	22 spaces which may be reduced by up to four spaces if they are legally dedicated for use by 510 Central Avenue for residential purposes. (Z.-1-142366)

R9-3(13)

a) Regulation:

i)	Height (Maximum) (Z.-1-152390)	9 storeys

R9-3(14) 644 and 646 Huron Street

a) Regulations:

i)	Front Yard Setback (Minimum and Maximum)	2 metres (6.5 feet) to a maximum of 4 metres

		(13.1 feet)
ii)	Interior Side Yard Setback (Minimum)	2 metres (6.5 feet) plus 1 additional metre for each storey above the third storey.
iii)	Height (Maximum) (Z.-1-182656)	13 metres (42.6 feet)

R9-3(15) 391 South Street

a) Permitted Uses

i) Apartment buildings
ii) Stacked townhouses

b) Secondary Permitted Uses on the ground floor abutting the Riverfront Promenade:

i) Restaurants, eat-in
ii) Studios

c) Regulations

i)	Lot Coverage (Maximum)	80%
ii)	Height Minimum Maximum	 21 m (69 ft) 30 m (98 ft)
iii)	Density Minimum Maximum	 75 units per hectare 100 units per hectare
iv)	Floor plate above 4th Storey Maximum	800m²
v)	Front and Exterior Side Yard Setbacks Minimum Maximum	 0 m (0 ft) 3m (10 ft)
vi)	Rear Yard Requirements Minimum	 0m (0 ft)
vii)	Interior Side Yard Requirements Minimum	 0m (0 ft)
viii)	Landscaped Open Space Minimum	20%
ix)	Parking requirement for residential uses per unit Minimum (Z.-1-182687)	0.75 spaces

R9-3(16) 3700 Colonel Talbot Road and 3645 Bostwick Road

a) Regulations:

i)	Front Yard and Exterior Side Yard Depth (m) (Minimum): (Maximum):	 1.0 metres (3.3 feet) 4.0 metres (13.1 feet)
ii)	Density (Minimum): (Maximum):	 30 units per hectare 100 units per hectare
iii)	Height (Minimum):	 2 Storeys

(Maximum): 7 Storeys (24m)

iv) Building Orientation – The principle entrance shall be oriented to Bostwick Road or at the corner of Bostwick Road and future Street A.
(Z.-1-192790)

R9-3(17) 3700 Colonel Talbot Road and 3645 Bostwick Road

a) Regulations:

i) Front Yard and Exterior Side Yard Depth (m)
(Minimum): 1.0 metres (3.3 feet)
(Maximum): 4.0 metres (13.1 feet)

ii) Density
(Minimum): 30 units per hectare
(Maximum): 100 units per hectare

iii) Height
(Minimum): 2 Storeys
(Maximum): 9 Storeys (32m)

iv) Building Orientation – The principle entrance shall be oriented to Bostwick Road or at the corner of Bostwick Road and future Street A.
(Z.-1-192790)

R9-3(18) 3700 Colonel Talbot Road and 3645 Bostwick Road

a) Regulations:

i) Front Yard and Exterior Side Yard Depth (m)
(Minimum): 1.0 metres (3.3 feet)
(Maximum): 4.0 metres (13.1 feet)

ii) Density
(Minimum): 30 units per hectare
(Maximum): 100 units per hectare

iii) Height
(Minimum): 2 Storeys
(Maximum): 7 Storeys (24m)

iv) Building Orientation – The principle entrance shall be oriented to Bostwick Road or at the corner of Bostwick Road and future Street M.
(Z.-1-192790)

R9-3(19) 799 Southdale Road West

a) Regulations:

i) Density (maximum) 100uph

ii) Height (maximum) 17 metres

iii) Front yard (minimum) 0.5 metres

iv) West Side Yard (minimum) 4.8 metres

v) East Side Yard (minimum) 6.0 metres

vi) The front lot line is deemed to be Southdale Road West

vii) All buildings must be oriented to the Southdale Road West frontage
(Z.-1-202876)

R9-3(20) 1515 Trossacks Avenue

a) Regulations

i)	Height (6 Storeys) (Maximum)	21 metres
ii)	Density (Maximum)	269 UPH
iii)	Setback to the Sight Triangle (minimum)	0.4 metres
iv)	Exterior Side Yard Setback (Fanshawe Park Road West) (minimum)	2.0 metres
v)	Exterior Side Yard Setback (3-6 storeys) (Fanshawe Park Road West) (minimum)	4.4 metres
vi)	Exterior Side Yard Patio Setback (minimum)	0.0 metres
vii)	Front Yard Setback (Trossacks Avenue) (minimum)	2.2 metres
viii)	Rear Yard Setback (1-2 Storeys) (minimum)	5.9 metres
ix)	Rear Yard setback (3-6 Storeys) (minimum) (Z.-1-233139)	8.3 metres

R9-3(21) 488-492 Pond Mills Road

b) Regulations

i)	For the purposes of Zoning, Pond Mills Road is considered to be the front lot line.	
ii)	Front Yard Setback (Minimum)	3.0 metres (9.8 feet)
iii)	North Interior Side Yard Setback (Minimum)	4.4 metres (14.8 feet)
iv)	Rear Yard Setback for Parking Lot to Property Line (Minimum)	3.0 metres (9.8 feet)
v)	Height (Maximum)	15 metres (or 4 Storeys)
vi)	Balcony Encroachment on Apartment Buildings: Projection permitted in the required yard (Maximum)	1.5 metres provided the projection is no closer than 2.5 metres to the front lot line.
vii)	The main building entrance shall be oriented to Pond Mills Road. (Z.-1-243169)	

R9-3(22) 2060 Dundas Street

a) Regulations

i) For the purposes of zoning, the easterly lot line abutting the unopened City right-of-way shall be deemed to be the front lot line

ii) Front Yard Setback (Minimum): 4.5m
iii) South Interior Side Yard Setback (Minimum): 6.0m
iv) Rear Yard Setback (Minimum): 6.5m
v) Setback to the OS5 Zone: 0m to buildings and parking
vi) Height (Maximum): 6-storeys (21.0m)
vii) Density (Maximum): 150 units per hectare
viii) Landscaped Open Space (Minimum): 24%
(Z.-1-243245)

R9-3(23) 1378-1398 Commissioners Road West

a) Regulations:

i) For the purposes of zoning, Commissioners Road West is deemed to be the front lot line.

ii) Front Yard Depth (Minimum): 2.0 metres

iii) West Exterior Side Yard Depth (Minimum): 4.0 metre

iv) Rear Yard Depth (Minimum): 20.0 metres
(Z.-1-253295)

R9-3(24) 3849 Campbell Street

a) Regulations

i) Front and Exterior Side Yard Depth (minimum): 3.0 m (9.8 ft)

ii) Lot Coverage (%) (maximum): 45

iii) Height (maximum): 32.0 m (105 ft)

iv) Enhanced Landscape Strip

1. A minimum 5.0 metre deep Landscape Open Space strip shall be required adjacent to an Open Space (OS5) Zone, within which a fence is permitted, but no surfaced walk, patio, swimming pool or similar area is permitted.
(Z.-1-253317)

R9-3(25) 3680 and 3700 Colonel Talbot Road

a) Regulations:

i)	Front and Exterior Yard Setback (Minimum)	1.0 metres
ii)	Density (Maximum)	120 units per hectare
iii)	Height (Maximum)	9 storeys (32 metres)
iv)	Ground Floor Height (Minimum)	4.0 metres

(Z.-1-253333)

R9-3(26) 3563 Bostwick Road – South and West Portions of Blocks 1, 2 & 4

a) Additional Permitted Uses

i) Stacked townhouses;

ii) Townhouses; and

iii) Apartment buildings, handicapped persons apartment buildings, lodging house class 2, senior citizen apartment

buildings, and continuum-of-care facilities with any of the other uses listed below on the ground floor:

a) Animal clinics;
b) Art galleries;
c) Artisan Workshop
d) Bake shops;
e) Boutique;
f) Catalogue stores;
g) Commercial recreation establishments;
h) Commercial schools;
i) Convenience service establishments;
j) Convenience stores;
k) Day care centres;
l) Delicatessens;
m) Duplicating shops;
n) Financial institutions;
o) Florist shops;
p) Gift shops;
q) Grocery stores;
r) Hair dressing establishments;
s) Institutions;
t) Laundromats;
u) Libraries;
v) Liquor, beer and wine stores;
w) Medical/dental offices;
x) Museums;
y) Offices;
z) Personal service establishments;
aa) Place of entertainment;
bb) Private clubs;
cc) Private schools;
dd) Repair and rental establishments;
ee) Restaurants, outdoor patio;
ff) Restaurants;
gg) Retail stores;
hh) Service and repair establishments;
ii) Studios;
jj) Supermarkets;
kk) Taverns;
ll) Video rental establishments

b) Regulations

i) Front and Exterior Side Yard Depth (Minimum) - 3.0 metres

ii) Rear Yard Depth, abutting a public street (Minimum) - 3.0 metres

iii) Interior Site Yard Depth (Minimum) - 0.25 metres for every 1.0 metres of height, not in no case less than 4.5 metres.

iv) Density (Minimum) - 30 units per hectare

v) Density (Maximum) - 120 units per hectare

vi) Height (Minimum) - the greater of 7.5 metres or 2 storeys

vii) Height (Maximum) - the lesser of 32 metres or 9 storeys

viii) First Storey Height (Minimum) - 4.0 metres

c) Notwithstanding Section 3.9 2) of the Zoning By-Law, where a lot is divided into two or more R9-7(77) and R9-3(26) zones, each such portion of the said lot shall not be considered a separate lot as defined herein. No minimum required yard or setback shall be required from the dividing zone boundary, and the maximum height and maximum density in each zone shall continue to apply to all buildings within the zone.
(Z.-1-253388)

d) R9-4 Zone Variation

R9-4(1) 180-186 Commissioners Road West & 548 Viscount Road

a) Additional Permitted Uses

i) Stacked Townhouse Dwellings

b) Regulations

i) For the purposes of zoning, the front lot line is deemed to be Commissioners Road West
ii) Density (max) – 105 units per hectare

c) Additional Regulations for Stacked Townhouse Dwellings

i) Exterior Side Yard Depth (minimum) – 5.0 metres
ii) Rear Yard Depth (minimum) – 3.5 metres
iii) Height (maximum) – 12.0 metres

d) Additional Regulations for Apartment Building

i) Front Yard Depth (minimum) – 1.0 metres
ii) Front Yard Depth (maximum) – 3.0 metres
iii) Exterior Side Yard Depth (minimum) – 5.5 metres
iv) Interior Side Yard Depth (minimum) – 7.0 metres
v) Height (maximum) – 14.0 metres
vi) Yard Encroachments for balconies from Commissioners Road West (maximum) – 1.8 metres provided the projection is no closer than 0.5 metres to the lot line
(Z.-1-212955 deleted and replaced by Z.-1-253355)

R9-4(2) 1420 Hyde Park Road

a) Regulations

i)	Front Yard Depth (Minimum)	1.5 metres (4.92 feet)
ii)	Front Yard Depth (Maximum)	3.0 metres (9.84 feet)
iii)	Exterior Side Yard Depth (Minimum)	1.5 metres (4.92 feet)
iv)	Exterior Side Yard Depth (Maximum)	3.0 metres (9.84 feet)
v)	Interior Yard Depth (Minimum)	4.2 metres (13.78 feet)
vi)	Height (Maximum)	16.0 metres (52.49 feet)
vii)	Density (Maximum)	111 units per hectare
viii)	Parking (Minimum)	1.1 spaces per unit

(Z.-1-223012)

R9-4(3) 3480 Morgan Avenue

a) Additional Permitted Uses:

a. Stacked Townhouses

b. Townhouses

b) Regulations:

i)	Lot Frontage (Minimum)	20m
ii)	Front Yard Depth (Minimum)	4.5m (14.76ft)
iii)	Exterior Side Yard Depth (Minimum)	4.5m (14.76ft)
iv)	Interior Side Yard Depth To Northwest property line (Minimum)	2.2m (7.2ft)
v)	Rear Yard Depth (Minimum)	4.5m (14.8ft)
vi)	Height For Townhouses and Stacked Townhouses (Maximum)	14m (45.9ft)
vii)	Height All other uses (Maximum)	17m (55.77ft) (5 Storeys)
viii)	Lot Coverage (Minimum) (Z.-1-233145)	40%

R9-4(4)

a) Regulations:

i)	West Yard Depth	3.0 metres (Minimum) 8.0 metres (Maximum)
ii)	North Yard Depth (Minimum)	3.0 metres
iii)	South Yard Depth	3.0 metres (Minimum) 8.0 metres (Maximum)
iv)	East Yard Depth (Minimum)	1.0 metre for every 1.0 metre of main building height, or fraction thereof;
v)	Height	2 storeys (Minimum) 4 storeys (Maximum)
vi)	Density (Maximum)	120 units per hectare
vii)	No parking or drive aisles shall be located between a building and the adjacent street line.	

viii) Where more than one building is to be developed, the maximum yard depths shall only apply to the building nearest to the lot line shared with the street. (Z.-1-243246)

R9-4(5)

a) Regulations:

i)	Southwest Yard Depth (Minimum)	3.0 metres
ii)	Southeast Yard Depth (Minimum)	6.0 metres
iii)	West Yard Depth (Minimum)	6.0 metres
iv)	North Yard Depth (Minimum)	1.2 metres
v)	Height	1 storey (Minimum) 4 storeys (Maximum)

vi) Front face and primary entrance of all dwelling units located adjacent to a public street shall be oriented to the public street.

vii) Townhouse blocks shall be a maximum of eight (8) units in length. (Z.-1-243246)

R9-4(6)

a) Regulations:

i)	South Yard Depth	3.0 metres (Minimum) 8.0 metres (Maximum)
ii)	East Yard Depth (Minimum)	3.0 metres
iii)	West Yard Depth	3.0 metres (Minimum) 8.0 metres (Maximum)
iv)	North Yard Depth (Minimum)	1.0 metre for every 1.0 metre of main building height, or fraction thereof;
v)	Height	2 storeys (Minimum) 4 storeys (Maximum)
vi)	Density (Maximum)	120 units per hectare

vii) No parking or drive aisles shall be located between a building and the adjacent street line.

viii) Where more than one building is to be developed, the maximum yard depths shall only apply to the building nearest to the lot line shared with the street. (Z.-1-243246)

R9-4(7) 555-569 & 567 Commissioners Road West

a) Regulations

i) Front Yard Depth (Minimum) – 5.0 metres

ii) Rear Yard Depth (Minimum) – 40.0 metres

iii) East Interior Side Yard Depth (Minimum) – 6.5 metres

iv) West Interior Side Yard Depth (Minimum) – 7.5 metres

v) Height (Maximum) – 21.0 metres
(Z.-1-253334)

R9-4(8) 555, 559 & 567 Commissioners Road West

a) Regulations

i) Front Yard Depth (Minimum) – 5.0 metres

ii) Rear Yard Depth (Minimum) – 40.0 metres

iii) East Interior Side Yard Depth (Minimum) – 6.5 metres

iv) West Interior Side Yard Depth (Minimum) – 7.5 metres

v) Height (Maximum) – 21.0 metres
(Z.-1-253349)

e) R9-5 Zone Variation

R9-5(1) 552 Wonderland Road North

a) Regulations

i) Density bonus regulations shall not apply.

ii) All yard setbacks (Z.-1-93158) — 0.0 metre from the OS4 Zone Variation

R9-5(2) 99 Southdale Road West

a) Regulations:

i)	Density (maximum)	100 units per hectare
ii)	Height (maximum)	29.5 metres
iii)	Front yard (minimum)	6.0 metres
iv)	West Side Yard (minimum)	6.5 metres
v)	East Side Yard (minimum)	12.0 metres
vi)	Rear Yard	6.0 metres

vii) The density, lot area, lot coverage and landscaped open space calculations shall be based on a lot area which includes the lands in the abutting Open Space (OS4) Zone.
(Z.-1-222978)

R9-5(3) 3614, 3630 Colonel Talbot Road and 6621 Pack Road

a) Additional Permitted Uses

i) Stacked Townhouses

ii) Townhouses

b) Regulations

i) Minimum front yard setback of 4.5 metres

ii) Minimum exterior side yard setback of 2.5 metres

iii) Minimum interior side yard setback of 1.2 metres

iv) Minimum rear yard setback of 4.5 metres

v) Minimum 1 parking space per unit

vi) Maximum lot coverage of 50 percent

vii) Maximum height of 14 metres for townhouses and stacked townhouses

viii) Maximum height of 6 storeys (20 metres) for all other uses

ix) Maximum density of 100 units per hectare (Z.-1-243229)

R9-5(4) 3614, 3630 Colonel Talbot Road and 6621 Pack Road

a) Additional Permitted Uses

i) Stacked Townhouses

ii) Townhouses

b) Regulations

i) Minimum front yard setback of 4.5 metres

ii) Minimum exterior side yard setback of 2.5 metres

iii) Minimum interior side yard setback of 1.2 metres

iv) Minimum rear yard setback of 4.5 metres

v) Minimum 1 parking space per unit

vi) Maximum lot coverage of 50 percent

vii) Maximum height of 14 metres for townhouses and stacked townhouses

viii) Maximum height of 4 storeys (13 metres)

ix) Maximum density of 100 units per hectare (Z.-1-243229)

R9-5(5) 168 Meadowlily Road South

a) Regulations:

i)	Front Yard Setback (Minimum)	4.5 metres
ii)	Exterior Side Yard Setback (Minimum)	4.5 metres
iii)	Building Height (Maximum)	For apartment buildings located within 80 metres of the centreline of Commissioners Road East, the maximum building height shall be 8 storeys (26 metres) For all other permitted uses, the maximum building height shall be 12 metres.
iv)	Density	180 units per hectare

(Maximum)
(Z.-1-253323)

R9-5(6) 1196 Sunningdale Road West

a) Regulations

i)	Permitted Uses	Apartment Building Cluster Stacked Townhouses Cluster Townhouses
ii)	Front Yard (Minimum)	3.0 metres
iii)	Exterior Side Yard (Minimum)	3.0 metres
iv)	Rear Yard (Minimum)	8.4 metres
v)	Interior Side Yard (Minimum)	10.0 metres shall be required for buildings with a height of 4 storeys or less. For buildings greater than 4 storeys in height: 1.2 metres (3.9 feet) per 3.0 metres (9.8 feet) of main building height or fraction thereof, but in no case less than 7.0 metres (23.0 feet) 6.0 metres (19.7 feet) plus 1.0 metres (3.3 feet) per 1.0 metre (3.3 feet) in height for all portions of a building above 6.0 metres (19.7 feet) in height where the Residential R9 Zone abuts lands zoned Residential R1 or Residential R2.
vi)	Height (Maximum)	6 storeys (20.0 metres)
vii)	Density (Maximum)	130 Units per Hectare
viii)	For Cluster Townhouses garages shall not project beyond the façade of the dwelling or façade (front face) of any porch and shall not occupy more than 50% of lot frontage. (Z.-1-253358)	

f) R9-6 Zone Variation

R9-6(1)

a) Regulations

i)	Density bonus regulations shall not apply.	
ii)	All yard setbacks	0.0 metre from the OS4 Zone Variation
iii)	Lot Coverage (Maximum) (Z.-1-92063)	55%

R9-6(2)

a) Regulations

i)	Rear Yard Depth (Minimum)	3 metres (9.8 feet) per 3 metres of building height or fraction thereof greater than 15 metres (49.2 feet) but in no case less than 7 metres (23.0 feet). (O.M.B. File # R 910387 - Appeal #9009-14) December 21, 1993)

g) R9-7 Zone Variation

R9-7(1)

a) Regulations:

i)	Setback from Centreline	18 metres (57.6 feet) of Riverside Drive
ii)	Total Number of Units	268

R9-7(2)

a) Regulations:

i)	Coverage (Maximum)	20% plus parking structures.
ii)	Yards to Property Lines	One-half the height of the building; however separation between structures within the same zone will be as per the Site Plan Agreement registered on title.

R9-7(3)

a) Regulations:

i)	Front Yard	7.5 metres (24.6 feet) (Minimum)
ii)	Exterior Side Yard	6.0 metres (19.7 feet) (Minimum)
iii)	Interior Side Yard	5.0 metres (16.4 feet) (Minimum)
iv)	Rear Yard (Minimum)	7.5 metres (24.6 feet)

R9-7(4)

a) Additional Permitted Use:

i) Convenience store.

b) Regulations

i)	Gross Floor Area (Maximum)	100.0 square metres for Convenience Store (1,076 square feet)

(O.M.B. File #910043, R 910387 - Appeal #5013 June 4, 1993)

R9-7(5)

a) Additional Permitted Use:

i) Bed and breakfast establishment.

b) Regulations

i)	Lot Area (Minimum)	2 000 square metres (21,528 square feet).
ii)	Rear Yard (Minimum)	15 metres (49.21 feet).
iii)	Front Yard (Minimum)	0 metre (0 feet).
iv)	Exterior Side Yard (Minimum)	4.5 m (14.8 ft.).

v) No vehicular access will be provided to the side street.

vi) Lot frontage is defined as frontage onto an arterial road.
(O.M.B. File #O 930014/Z 930015 - Appeal #9903 June 4, 1993)

R9-7(6)

a) Regulations

i)	Rear Yard and Interior Side Yard Depth (Minimum)	For all portions of a building above 6 metres (19.7 feet) in height, the required minimum setback shall be 1 metre (3.3 feet) for each 1 metre (3.3 feet) in height, but in no case less than 6 metres (19.7 feet) for all portions of a building between 0 and 6 metres (19.7 feet) in height where a building abuts a Residential R1 or Residential R2 Zone Variation. (Z.-1-95359 and Z.-1-95360)

R9-7(7)

a) Regulations:

i)	Dwelling Setback From Railway Right-of-Way (Minimum):	120 metres (394 feet) in the absence of a safety berm, combination safety berm and acoustic fence, adjoining and parallel to the railway right-of-way, or 30 metres (98 feet) in conjunction with the safety/acoustic berm noted above.

(Z.-1-99703 - O.M.B. Order No. 0595 - Order Issue Date: April 18, 2000)

R9-7(8)

a) Regulations:

i)	Rear Yard and Interior Side Yard Depth (Minimum)	6.0 metres (19.7 feet) plus 1.0 metre (3.3 feet) per 1.0 metre (3.3 feet) in height for all portions of a building above 6.0 metres (19.7 feet) in height.

ii) Where the lands to which this special provision applies are used for a combination of uses permitted by this zone and the

ResidentialR6 (R6-5) Zone, the maximum coverage regulation shall be 40 percent.

iii) Where the lands to which this special provision applies are used for a combination of uses permitted by this zone and the Residential R6 (R6-5) Zone, the maximum number of dwelling units permitted by the applicable density regulation in Table 13.3 shall be reduced at the rate of one dwelling unit for each cluster detached and/or attached dwelling unit proposed for development.

iv) The front and exterior side yard depth (minimum) regulation in Table 13.3 shall apply to the yards abutting existing and future secondary collector streets.
(Z.-1-041275)

R9-7(9)

a) Regulations

i)	Front Yard Townhouses (Minimum) Apartments	6 m (19.7 ft.) 5.7 m (18.7 ft.)
ii)	Exterior Townhouses Side Yard Parking Structure (Minimum)	1.8 m (5.9) 0.0 m
iii)	Rear Yard Apartments (Minimum) (Z.-1.061457)	8 m (26.2 ft.)

R9-7(10)

a) Regulation:

i) Notwithstanding the provisions of Section 3.9 2) a) of this By-law to the contrary, the maximum density calculation for the lands zoned R9-7(10) shall be based on a lot area of 1.33 ha (3.28 ac) which includes the lands in the abutting Open Space Special Provision (OS5(6)) Zone.
(Z.-1-061466)

R9-7(11)

a) Regulations:

i)	Coverage (Maximum)	35%

ii) Notwithstanding Table 13.3, the following height regulations shall apply:

Building 1 – to be located on northern half of site –
12 stories maximum

Building 2 – to be located on southwest portion of site –
9 stories maximum
(Z.-1-061580)

R9-7(12)

a) Permitted Uses:

i) Apartment buildings Lodging house class 2
ii) Senior citizens apartment buildings
iii) Continuum-of-care facilities
iv) Handicapped persons apartment buildings
v) Nursing homes
vi) Retirement lodges
vii) Continuum-f-care facilities
viii) Emergency care establishments

ix) Handicapped persons apartment buildings
x) Triplex
xi) Fourplex
xii) Townhouse
xiii) Stacked Townhouse

b) Regulations:

i)	Lot Area Minimum	1000 m2
ii)	Lot Frontage (m) Minimum	30.0 metres
iii)	Setback for 1st and 2nd From any street depth (m)	0.0 m minimum 3.0 m maximum
iv)	Setback for 3rd storey and Above	1.0 metre (max/min) plus the setback established for the 1st and 2nd storey's
v)	Setback from OS5 Open Space (%) Minimum	1.0 metre
vi)	Landscaped Open Space (%) Minimum	30%
vii)	Lot coverage	30%; plus up to 10% additional Maximum coverage, if the landscaped open Space provided is increased 1% for Every 1% in coverage over 30%
viii)	Height (m) Maximum for triplexes, fourplexes and townhouses	12.0 metres
ix)	Height (m) Maximum for all other uses	45.0 metres
x)	Density-units per hectare Minimum Maximum (Z.-1-081786)	 250 units per hectare 300 units per hectare

R9-7(13)

a) Additional Permitted Use:

i) Underground Commercial Parking Structure, to a maximum of 135 spaces.
(Z.-1-111983)

R9-7(14)

a) Regulation:

i) The maximum density calculation shall be based on a total lot area of 1.33 hectares (3.3. acres), which includes lands in the abutting OS5(3) Zone.
(Z.-1-112020)

R9-7(15)

a) Permitted Use:

i) One apartment building containing a maximum of 165 dwelling units.
(Z.-1-112014 – PL000128 – Issue Date: March 12th, 2010)

R9-7(16)

a) Regulations:

i)	Front yard depth to Sunningdale Road for the first 3 storey's (Z.-1-122099)	0.0 m minimum

R9-7(17) 982 Gainsborough Road

a) Regulation[s]

i)	Easterly Interior Side Yard Depth (minimum)	12 m (39.4 feet)
ii)	Yard Encroachment for balconies	3.0 metres (9.8 feet) provided the projection is no closer than 3.0 metres (9.8 feet) to the lot line. (Z.-1-132225)

R9-7(17)

a) Additional Permitted Uses

i) Townhouse or Stacked Townhouse

b) Regulations

i)	Density (minimum)	125uph (50.59 units/acre)
ii)	Density (maximum)	150 uph (60.73 units/acre)
iii)	Yard Depth Abutting the Commercial Zone to the South (minimum)	0.0 m
iv)	Yard Depth Abutting Dalmagarry Road and Tokala Trail (maximum)	5.0 m (16.4 ft.)
v)	East Yard Depth (min) (Z.-1-132170)	5.0 m (16.4 ft.)

R9-7(18) 401-463 Platt's Lane

a) Regulation:

i)	Parking (Minimum) (Z.-1-132244)	76 spaces

R9-7(19) 1615, 1619, 1623 and 1627 Richmond Street

a) Permitted uses:

i) Cluster townhouses
ii) Apartment buildings
iii) Senior citizens apartment buildings
iv) Continuum-of-care facilities

b) Regulations

i)	Lot Frontage (Minimum)	70.0 metres (229.6 feet)
ii)	Lot Area (Minimum)	0.60 hectares (1.4 acres)
iii)	Front Yard Depth	3.0 metres (9.8 feet) from

	(maximum)	the ultimate road allowance
iv)	Lot Coverage (Maximum)	40%
v)	Density (Maximum)	150 Units per Hectare (60 units per acre)
vi)	Bedrooms per dwelling unit (Maximum)	3

vii) No part of any required front yard, required side yard, or required rear yard shall be used for any purpose other than landscaped open space except where a common internal driveway connects to abutting properties located in a required side yard.

c) Additional Regulations for Apartment Buildings, Senior Citizen Apartment Buildings, and Continuum-of-Care Facilities

i)	Height (first 25.0 metres of lot depth) (Maximum)	15.0 metres (49.2 feet)
ii)	Setback from Rear Property Line (Minimum)	65.0 metres (213.3 feet)
iii)	Interior Side Yard Depth (Minimum)	3.0 metres (9.8 feet)

d) Additional Regulations for Cluster Townhouses

i)	Height (Maximum)	9.5 metres (31.2 feet)
ii)	Maximum height to be measured from grade to roof peak	
iii)	Basement ceiling height above grade (Maximum)	0.5 metres (1.6 feet)
iv)	Number of townhouse dwelling units (Maximum)	8
v)	Number of vertically attached townhouse dwelling units (Maximum)	4
vi)	North Interior Side Yard Depth (Minimum)	3.0 metres (9.8 feet)
vii)	South Interior Side Yard Depth (Minimum)	15.0 metres (49.2 feet)
viii)	Rear Yard Depth (Minimum) (Z.-1-142262)	15.0 metres (49.2 feet)

R9-7(20) 1631, 1635, and 1639 Richmond Street

a) Permitted Uses:

i) Apartment buildings
ii) Senior citizens apartment buildings
iii) Continuum-of-care facilities

b) Regulations:

i)	Lot Frontage (Minimum):	70.0 metres (229.6 feet)
ii)	Lot Area (Minimum):	0.60 hectares (1.4 acres)
iii)	Front Yard Depth (maximum):	3.0 metres (9.8 feet) from the ultimate road allowance
iv)	Interior Side Yard Depth (Minimum):	3.0 metres (9.8 feet)
v)	Lot Coverage (Maximum):	45%
vi)	Density (Maximum):	200 units per hectare (80 units per acre)
vii)	Bedrooms per dwelling unit (Maximum):	3
	Parking Standard (Minimum):	0.67 parking spaces per dwelling unit
viii)	No part of any required front yard, required side yard, or required rear yard shall be used for any purpose other than landscaped open space except where a common internal driveway connects to abutting properties located in a required side yard or provides vehicular access to Richmond Street located in the required front yard.	
ix)	Height (Maximum):	22.0 metres (72.2 feet) (first 25.0 metres of lot depth)
x)	Height (Maximum):	15.0 metres (49.2 feet) (beyond the first 25.0 metres of lot depth)
xi)	Setback from Rear Property Line (Minimum):	50.0 metres (164.0 feet)
xii)	Surface Parking Area Setback from Rear Property Line (Minimum):	28 metres (91.9 feet)

(Z.-1-142263 repealed and replaced by Z.-1-192769)

Repealed by OMB ORDER PL140204 – Repealed By-law No. Z.-1-142264

R9-7(22) 545 Fanshawe Park Road West

a) Regulations

i)	Front Yard Setback (Minimum)	5.0 meters (16.4 feet)
ii)	Interior Side Yard Setback (East) (Minimum)	12.4 meters (40.8 feet)
iii)	Interior Side Yard Setback (West) (Minimum)	9.2 meters (30.2 feet)
iv)	Rear Yard Setback (Minimum)	9.5 meters (31.2 feet)

(Z.-1-142294)

R9-7(23) 1643, 1649, and 1653 Richmond Street

a) Permitted uses for 1643 and 1649 Richmond Street:

i) Apartment Buildings

b) Regulations for 1643 and 1649 Richmond Street:

i)	Frontage (Minimum):	50 metres (165 feet)
ii)	Lot Area (Minimum):	0.4 hectares (1 acre)
iii)	Interior Yard Depth (Minimum):	3 metres (10 feet)
iv)	No part of any required front yard, required side yard, or required rear yard shall be used for any purpose other than landscaped open space except where a common internal driveway connects to abutting properties located in a required side yard, or where access to an underground parking garage is necessary in a required side yard.	
v)	Height (first 25.0 metres of lot depth) (Maximum):	22.0 metres (72.2 feet)
vi)	Height (beyond the first 25.0 metres of lot depth) (Maximum):	15.0 metres (49.2 feet)
vii)	Setback from Rear Property Line (Minimum):	50.0 metres (164 feet)
viii)	Surface Parking Area Setback from Rear Property Line (Minimum):	28 metres (91.9 feet)

c) Permitted uses for 1653 Richmond Street:

i) Apartment Buildings
ii) Medical/Dental Offices on ground floor of an apartment building

d) Regulations for 1653 Richmond Street:

i)	Frontage (Minimum):	20 metres (66 feet)
ii)	Lot Area (Minimum):	0.16 hectares (0.4 acres)
iii)	Interior Yard Depth (Minimum):	3 metres (10 feet)
iv)	Exterior Yard Depth (Minimum):	0.0 metres (0.0 feet)
v)	No part of any required front yard, required side yard, or required rear yard shall be used for any purpose other than landscaped open space except where a common internal driveway connects to abutting properties located in a required interior side yard, where access to an underground parking garage is necessary in a required interior side yard, where a common driveway provides vehicular access to Hillview Boulevard in the required exterior side yard, or where a vestibule structure is required to provide secondary entrance to an underground parking structure in accordance with the Ontario Building Code in the required rear yard.	

e) Additional regulations for Apartment Buildings:

i)	Height for the first	20.0 metres (65.5 feet)

	25.0 metres of lot depth (Maximum):	
ii)	Height beyond the first 25.0 metres of lot depth (Maximum):	17 metres (56 feet)
iii)	Setback from Rear Property Line (Minimum):	50.0 metres (164 feet)

f) Additional regulations for Medical/Dental Offices:

i)	Gross Floor Area (Maximum):	430 metres^2 (4,630 feet^2)
ii)	Parking	1 space/15 metres^2 GFA

g) Regulations applicable to and measured based on R9-7(23) Zone Boundaries:

i)	Density (Maximum):	200 units per hectare (80 units per acre)
ii)	Lot Coverage (Maximum):	45%
iii)	Front Yard Depth (Maximum):	3 metres (10 feet)
iv)	Bedrooms per Dwelling Unit (Maximum):	3
v)	Rear Yard Depth	15 metres (49 feet)
vi)	Parking for Residential Uses	0.67 spaces/unit

(Z.-1-142355 replaced by Z.-1-192769)

R9-7(24) 120 Weston Street

a) Additional Permitted Uses:

i) Indoor Beach Volleyball Facility
ii) Food service area in association with the Indoor Beach Volleyball Facility
iii) Convenience Store

b) Regulation[s]

i) Indoor Beach Volleyball Facility is conducted inside the existing building with the exception of an outdoor patio.

ii) Outdoor patio with a maximum area of 60 square metres (650 square feet) and a 12 square metre (130 square feet) breezeway addition may be permitted in association with the Indoor Beach Volleyball Facility

iii) A food service area inside the main building no greater than 300 square metres (3,229 square feet) of gross floor area shall be permitted in association with the Indoor Beach Volleyball Facility

iv)	Parking Standard for additional permitted uses (Minimum)	50 parking spaces
v)	Gross Floor Area for Convenience Stores (Maximum) (Z.-1-152407)	100 square metres (1,076 square feet)

R9-7(25) 598, 600, 604 & 608 Springbank Drive

a) Regulations:

i)	Height (Max.)	44m (13-storeys)
ii)	Front Yard Depth (Max.)	1.1m (3.6 ft.)
iii)	Exterior Yard Depth (Max.) (Z.-1-152432)	3.8m (12.5 ft.)

R9-7(26)

a) Permitted Uses:

i) Apartment buildings
ii) Lodging house class 2

b) Regulations:

i)	Dwelling Setback from a High Pressure Pipeline (Minimum) (Z.-1-172539)	20 metres

915, 965, 1031 and 1095 Upperpoint Avenue

c) Regulations:

ii)	Front and Exterior Yard Depth (Minimum): (Z.-1-192780)	3.0 metres

R9-7(27) 379 Sunningdale Road West

(a) Regulations

i) Density (Maximum): 150 units per hectare
ii) Height (Maximum): 10 storeys
(Z.-1-172626) OMB Approved November 15, 2017

R9-7(28) 3080 Bostwick Road (Site 3)

a) Regulations:

i)	Additional Permitted Uses: Townhouse dwelling Stacked Townhouse dwelling	
ii)	Height (Maximum):	12 storeys (55 metres) (223 ft)
iii)	Exterior Side Yard Setback (Minimum):	6m (19 ft)
iv)	Rear Yard Setback (Minimum):	15m (49 ft)
v)	Interior Side Yard Setback (Minimum):	2.5m (8 ft)
vi)	Lot Coverage (Maximum): (Z.-1-182712)	40%

R9-7(29) 800, 805 and 810 Chelton Road

a) Regulations:

i)	Front Yard Setback (Minimum):	3.0 metres

	(Maximum):	6.0 metres
ii)	Exterior Side Yard Setback (Minimum): (Maximum):	 3.0 metres 6.0 metres
i)	Height (Maximum): (Z.-1-192794)	Four (4) storeys 16 metres

R9-7(30) 1018 and 1028 Gainsborough Road

a) Regulations:

i)	East Interior Side Yard Depth (Minimum):	11.2 metres
ii)	West Interior Side Yard Depth (Minimum):	2.2 metres
iii)	Height (Maximum): (Z.-1-202816)	Twelve (12) storeys 44 metres

R9-7(31) 403 Thompson Road

b) Regulation[s]

ii)	Frontage (min)	27.0m
iii)	Front yard depth (min)	3.0m
iv)	Parking (min)	0.3 spaces per unit
v)	Dwelling unit size (min)	Notwithstanding 4.6 of this by-law the minimum required size for a bachelor dwelling unit shall be 27.0 square meters. (Z.-1-212913)

R9-7(32) 257-263 Springbank Drive

b) Regulations

ix)	North Interior Side Yard Setback (Minimum)	15.5 metres
x)	Exterior Side Yard Setback (Minimum)	0.3 metres
xi)	Front Yard Setback (Minimum)	2.0 metres
xii)	Parking Rate	1.0 space per unit
xiii)	Height (Northerly Portion)	5-storeys – 20 metres
xiv)	Height (Southerly Portion)	6-storeys – 23 metres
xv)	Density	137 units per hectare
xvi)	Balcony Projection (maximum) (Z.-1-222999)	0.6m from the lot line

R9-7(33) 520 Sarnia Road

a) Regulations

i)	Front Yard Depth (Minimum)	1.0 metres (3.3 feet)
ii)	Height (Maximum) (Z.-1-223023)	the lesser of 14.0 metres, or 4 storeys

R9-7(34) 712 Base Line Road East

a) Additional permitted uses, limited to the first floor of an apartment building

i) Animal hospitals
ii) Bake shops
iii) Clinics
iv) Commercial recreation establishments
v) Day care centres
vi) Dry cleaning and laundry depots
vii) Duplicating shops
viii) Financial institutions
ix) Grocery stores
x) Laboratories
xi) Laundromats
xii) Libraries
xiii) Medical/dental offices
xiv) Offices
xv) Personal service establishments
xvi) Private clubs
xvii) Restaurants
xviii) Retail stores
xix) Service and repair establishments
xx) Studios
xxi) Video rental establishments
xxii) Cinemas
xxiii) Brewing on premises establishment
xxiv) Food store
xxv) Convenience store
xxvi) Post office
xxvii) Convenience service establishments
xxviii) Bed and breakfast establishments
xxix) Antique store
xxx) Artisan workshop
xxxi) Craft brewery

b) Regulations

i)	Front Yard Depth (Minimum)	1.5 metres (4.9 feet)
ii)	Front Yard Depth (Maximum)	4.0 metres (13.1 feet)
iii)	Height (Maximum)	the lesser of 36.0 metres, or 12 storeys
iv)	Density (Maximum)	150 units per hectare

v) A drive-through with a 0m setback along the west property boundary

vi) A west interior side yard setback of no closer than 6.8m from the edge of the drive-through to the building is required.

vii) A landscape buffer of no less than 3.0 metres from the edge of the drive-through within the 6.8m setback between the edge of the drive-through and the building. (Z.-1-223055)

R9-7(35) 955 Commissioners Road East

a) Regulations

i)	Lot Frontage (Minimum)	0 metres
ii)	North Interior Side Yard Depth Parking Garage/ Accessory Structure (Minimum)	0.0 metres
iii)	South Interior Side Yard Depth Parking Garage/ Accessory Structure (Minimum)	0.0 metres
iv)	East Interior Side Yard Depth Parking Garage/ Accessory Structure (Minimum)	3.5 metres
v)	South Interior Side Yard Depth Main Building (Minimum)	0.0 metres
vi)	West Interior Side Yard Depth Main Building (Minimum)	3.0 metres
vii)	Lot Coverage (Maximum)	50%
viii)	Lot Coverage Parking Garage/ Accessory Structure (Maximum)	28%
ix)	Density (Maximum)	270 units per hectare
x)	Height Main Building (Maximum) (Z.-1-233094)	48 metres (14 Storeys)

R9-7(36) 161 Bonaventure Drive

a) Regulations

i)	Density (Maximum)	232 Units per hectare
ii)	Interior Side Yard Depth (Minimum)	12.0 metres (39.3 feet)
iii)	Exterior Side Yard Depth (Minimum)	2.0 metres (6.5 feet)
iv)	Rear Yard Depth (Minimum)	16.0 metres (52.4 feet)
v)	Parking Area Setback From North Lot Line (Minimum)	15 metres (49.2 feet)

vi) No access shall be provided along Bonaventure Drive within the first 60 metres of the intersection, south of the Dundas Street Frontage. (Z.-1-233095)

R9-7(37) 1120-1126 Oxford Street East and 2 & 6 Clemens Street

a) Regulations

i)	Front and Exterior Side Yard Depth (Minimum)	1.8 metres
ii)	Front and Exterior Side Yard Depth (Maximum)	6.0 metres
iii)	Setback to the Sight Triangle (Minimum)	0.0 metres
iv)	Rear Yard Depth (Minimum)	20.0 metres for the first 4 storeys; 21.0 metres for the 5th and 6th storeys; and 1.0 metre for each 1.0 metre of building height beyond the 6th storey
v)	Interior Side Yard Depth For the First 5 Storeys (Minimum)	1.5 metres for the first 26.0 metres of lot depth where there are no windows to habitable rooms
vi)	Interior Side Yard Depth For the 6th to 8th Storeys (Minimum)	3.5 metres for the first 26.0 metres of lot depth
vii)	Interior Side Yard Depth Above the 8th Storey (Minimum)	9.0 metres for the first 26.0 metres of lot depth
viii)	Interior Side Yard Depth for All Other Portions of the Building (Minimum)	9.0 metres beyond 26.0 metres of lot depth
ix)	Density (Maximum)	415 UPH
x)	Unit Size (Minimum)	44.6 square metres for a one-bedroom unit
xi)	Lot Coverage (Maximum) (Z.-1-233114)	40%

R9-7(38) 129-131 Base Line Road West

a) Regulations

i)	Front Yard Setback (Minimum)	2.0 metres (6.6 feet)
ii)	East Interior Side Yard Setback (Minimum)	5.0 metres (16.4 feet)
iii)	West Interior Side Yard Setback (Minimum)	13.0 metres (42.7 feet)
iv)	East and Rear Yard Setback	3.0 metres

	from Underground Parking Structure to Property Line (Minimum)	(9.8 feet)
v)	Surface Parking Spaces (Maximum)	36 spaces
vi)	The main building entrance shall be oriented to Base Line Road West.	
vii)	Density (Maximum)	306 units per hectare
viii)	Height (Maximum) (Z.-1-233115)	51 metres (or 14 Storeys)

R9-7(39) 568 Second Street

a) Regulations

i)	Density (maximum)	314 units per hectare
ii)	Height (maximum)	41 metres
iii)	Surface parking (maximum)	0.5 spaces per unit
iv)	Interior side yard setback west and northwest (minimum)	5 metres
v)	Step back at the 4th storey (minimum) (Z.-1-233120)	1.5 metres

R9-7(40) 1176, 1180, 1182, and 1186 Huron Street and 294 Briarhill Avenue

a) Regulations

i)	Lot Area (Minimum)	6,800 square metres
ii)	Front and Exterior Side Yard Depth (Minimum)	1.0 metre
iii)	Front and Exterior Side Yard Depth (Maximum)	6.0 metres
iv)	Front Yard Building Stepback Above the 6th Storey (Minimum)	2.0 metres
v)	Exterior Side Yard Building Stepback Above the 6th Storey (Minimum)	1.5 metres
vi)	Setback to the Sight Triangle (Minimum)	0.0 metre
vii)	Rear Yard Depth (Minimum)	1.0 metres per 1.0 metres of main building height or fraction thereof for all portions of the main

		building above 3.0 metres in height, but in no case less than 7.5 metres
viii)	Interior Side Yard Depth (Minimum)	1.0 metres per 2.0 metres of main building height or fraction thereof, but in no case less than 4.5 metres
ix)	Density (Maximum)	225 UPH

x) Notwithstanding Section 4.27, balconies on an apartment building may be permitted to encroach up to 0.5 metres into the required front and exterior side yard.

xi) Notwithstanding anything to the contrary, Huron Street shall be deemed to be the front lot line. (Z.-1-233121)

R9-7(41) 954 Gainsborough Road

c) Regulations

ix)	Front Yard Depth (Minimum)	4.3 metres (14.1 feet)
x)	Rear Yard Depth (Minimum)	4 metres (13.1 feet)
xi)	Interior Side Yard Depth (Minimum)	7 metres (22.9 feet)
xii)	Exterior Side Yard Depth (Minimum)	1.5 metres (4.92 feet)

Not withstanding Section 4.27 of this By-law.

xiii)	Height (Maximum)	6 Storeys
xiv)	Density (Maximum) (Z.-1-233122)	276 unit per hectare

R9-7(42) 1364-1408 Hyde Park Road

a. Additional permitted uses:

i) Cluster townhouses

ii) Cluster stacked townhouses

b. Regulations:

i) Front yard setback:
2.0m (except for portions that abut the OS5 Zone, in which case the required setback is 0.0m)

ii) Interior Side yard setback:

North: 2.0 metres when the end wall of a unit contains no windows to habitable rooms, or 6.0metres when the wall of a unit contains windows to habitable rooms.

South: 2.0m (except for portions that abut the OS5 Zone, in which case the required setback is 0.0m)

iii) Rear yard setback: 2.0m

iv) Height:
Within 55m of South Zone Boundary: 24.0m

	Within 40m of Hyde Park Road, beyond 55m of the South Zone Boundary:	21.0m
	Remaining Lands within the Zone:	12.0m
v)	Parking:	0.3 spaces per apartment unit

vi) Additional Regulations: Notwithstanding any provisions of the by-law to the contrary, the zoning regulations shall be applied to the limits of the proposed R9-7(_) Zone Boundary even in the event of further subdivision of these lands. (Z.-1-233143)

R9-7(43) 3480 Morgan Avenue

a) Additional Permitted Uses:

i) Stacked Townhouses

ii) Townhouses

iii) Hotels/Motels

b) Regulations:

i)	Front Yard Depth (Minimum)	4.5m (14.76ft)
ii)	Exterior Side Yard Depth (Minimum)	4.5m (14.76ft)
iii)	Height For Townhouses and Stacked Townhouses (Maximum)	14m (45.9ft)
iv)	Height All other uses (Maximum)	22m (72.17ft) (6 Storeys)
v)	Lot Coverage (Minimum)	40%
vi)	Density (Maximum) (Z.-1-233145)	200 unit per hectare

R9-7(44) 3480 Morgan Avenue

a) Additional Permitted Uses:

i) Stacked Townhouses

ii) Townhouses

iii) Hotels/Motels

b) Regulations:

i)	Front Yard Depth (Minimum)	4.5m (14.76ft)
ii)	Exterior Side Yard Depth (Minimum)	4.5m (14.76ft)
iii)	Interior Side Yard Depth To Northwest property line (Minimum)	4.5m (14.76ft)
iv)	Rear Yard Depth (Minimum)	4.5m (14.8ft)
v)	Height For Townhouses and Stacked Townhouses (Maximum)	14m (45.9ft)
vi)	Height All other uses (Maximum)	17m (55.77ft) (5 Storeys)

vii)	Lot Coverage (Minimum) (Z.-1-233145)	40%

R9-7(45) 3480 Morgan Avenue

a) Additional Permitted Uses:

i) Stacked Townhouses

ii) Townhouses

iii) Hotels/Motels

b) Regulations:

i)	Front Yard Depth (Minimum)	4.5m (14.76ft)
ii)	Exterior Side Yard Depth (Minimum)	4.5m (14.76ft)
iii)	Interior Side Yard Depth (Minimum)	4.5m (14.76ft)
iv)	Rear Yard Depth (Minimum)	4.5m (14.8ft)
v)	Landscape Open Space For Townhouses and Stacked Townhouses (Minimum)	25%
vi)	Height For Townhouses and Stacked Townhouses (Maximum)	14m (45.9ft)
vii)	Height All other uses (Maximum)	22m (72.17ft) (6 Storeys)
viii)	Lot Coverage (Minimum)	40%
ix)	Density (Maximum) (Z.-1-233145)	200 unit per hectare

R9-7(46) 978 Gainsborough Road

a) Regulations

i)	Rear Yard Depth (minimum)	17.5 metres
ii)	West Interior Side Yard Depth (minimum)	18.0 metres
iii)	East Interior Side Yard Depth (minimum)	12.0 metres
iv)	North Interior Side Yard Depth (minimum)	20.0 metres
v)	Height (maximum)	17-storeys (60 metres)
vi)	Density (maximum)	370 UPH
vii)	Lot Coverage (maximum)	38%
viii)	Lot Frontage (minimum)	0 metres

ix) Yard Encroachment for Balconies: 3.0 metres (9.8 feet)

provided the projection is no closer than 3.0 metres (9.8 feet) to the lot line.
(Z.-1-233163)

R9-7(47) 625 Mornington Avenue and 1299, 1303, 1307 & 1323 Oxford Street East

a) Regulations

i) Front Yard Depth (Minimum) – 3.8 metres to the podium, 9.4 metres to the main building, and 0.0 metres to the parking garage

ii) North Interior Side Yard Depth (Minimum) – 12.8 metres to the main building and 0.0 metres to the parking garage

iii) South Interior Side Yard Depth (Minimum) – 5.0 metres

iv) Rear Yard Depth (Minimum) – 17.4 metres to the main building and 0.3 metres to the parking garage

v) Building Stepback Above the 2nd, 3rd, and 7th Storeys (Minimum) – 3.0 metres

vi) Podium Height (Minimum) – 2 Storeys

vii) Podium Height (Maximum) – 3 Storeys

viii) Ground Floor to Second Floor Height (Minimum) – 3.6 metres

ix) Glazing (Minimum) – 55% on the west (front) façade of the podium; 40% on the west (front) and east (rear) façades of the tower; and 45% on the north and south façades of the tower

x) Floorplate Area 8th Storey and Above (Maximum) – 1,000 square metres

xi) Density (Maximum) – 475 units per hectare

xii) Lot Coverage (Maximum) – 81%

xiii) Landscaped Open Space (Minimum) – 12%

xiv) The main building entrance shall be oriented to Mornington Avenue
(Z.-1-243168)

R9-7(48) 755, 785 and 815 Wonderland Road South

a) Additional Permitted Use

i) Cluster Townhouse Dwellings
ii) Cluster Stacked Townhouse Dwellings
iii) Apartment buildings with any or all of the other permitted uses on the first floor.

b) Regulations

i)	Height (Maximum)	36.0 metres (118 feet)
ii)	Density (Maximum)	250 Units per Hectare

(Z.-1-243189 – OLT-23-000367)

R9-7(49) 3050 Yorkville

a) Regulations

i)	Front Yard Depth (Minimum)	3.0 metres
ii)	Rear Yard Depth (Minimum)	19.7 metres
iii)	Interior Side Yard Depth (Minimum)	5.0 metres

iv)	Canopy Encroachment (Maximum)	0.0 metres
v)	Density (Maximum)	286 units per hectare
vi)	Long-Term Bicycle Parking (Minimum)	156 spaces
vii)	Short-Term Bicycle Parking (Minimum)	15 spaces

viii) To the extent that any of the performance standards of B-57 Zone conflict with R9-7(49) Zone, the R9-7(49) Zone regulations shall prevail. The provisions of B-57 Zone are otherwise unaffected and remain in-force.
(Z.-1-243199)

R9-7(50) 3010 Yorkville

a) Additional Permitted Uses

i) Mixed-Use Apartment Building

ii) Uses permitted under the Restricted Office (RO2) Zone Variation

b) Regulations

i)	Front Yard Depth (Minimum)	4.0 metres
ii)	Front Yard Depth (Maximum)	6.0 metres
iii)	Exterior Side Yard Depth (Minimum)	6.0 metres
iv)	Exterior Side Yard Depth (Maximum)	8.0 metres
v)	Stepback Above the 4th Storey along Southdale Road West (Minimum)	1.5 metres
vi)	Rear Yard Depth (Minimum)	2.5 metres
vii)	Density (Maximum)	350 units per hectare
viii)	Gross Floor Area for All Office Uses (Maximum)	2,000.0 square metres

ix) To the extent that any of the performance standards of B-57 Zone conflict with R9-7(50) Zone, the R9-7(50) Zone regulations shall prevail. The provisions of B-57 Zone are otherwise unaffected and remain in-force.
(Z.-1-243199)

R9-7(51) 6555 & 6595 Royal Magnolia Avenue

a) Additional Permitted Uses, restricted to the ground floor

i) Bake shop
ii) Convenience service establishments
iii) Convenience stores
iv) Craft brewery
v) Day care centres
vi) Dog or domestic cat grooming
vii) Florist shops
viii) Food stores
ix) Live-work
x) Personal service establishments
xi) Pharmacies
xii) Restaurants, eat-in
xiii) Restaurants, take-out
xiv) Retail
xv) Studios

b) Regulations

i) For the purpose of Zoning, Royal Magnolia Avenue is considered to be the front lot line.

ii) Front and Exterior Side Yard Depth (minimum): 3.0 metres

iii) Exterior Side Yard Depth (maximum): 9.0 metres

iv) Rear Yard Depth (minimum): 19.0 metres

v) Density (maximum): 165 units per hectare

vi) Height (maximum): 24.0m (6 storeys)

vii) Ground floor height (minimum): 4.0m

viii) Ground floor commercial floor space (minimum): 200 square metres.

ix) Drive-through facilities shall not be permitted.

x) Parking and drive aisles shall not be permitted in the front and exterior side yards. (Z.-1-243208)

R9-7(52) 530 Oxford Street West

a) Regulations

i)	Height (Maximum)	33 storeys or 115 metres (377.4 feet) – whichever is less
ii)	Density (maximum)	150 Units Per Hectare
iii)	Front Yard Setback (minimum)	0.5 metres (1.6 feet)
iv)	Exterior Side Yard Setback (minimum)	0.5 metres (1.6 feet)
v)	Interior Side Yard Setback (minimum)	0.0 metres
vi)	Landscaped Open Space (% minimum)	9.0%
vii)	Lot Coverage (% maximum)	40.0%
viii)	Bicycle Parking – long term (minimum)	367
ix)	To permit unlimited encroachments for balconies and canopies	
x)	Height podium Building “A” and “B” from lowest grade (maximum)	6 storeys

xi)	Step back above the podium – street facing facades (minimum)	5.0 metres (16.4 feet)
xii)	Setback above the podium of Building A from easterly property line at 655 Wonderland Road North (minimum)	10.0 metres (32.8 feet)
xiii)	Setback above the podium of Building B from the southerly property line at 655 Wonderland Road North (minimum)	12.0 metres (39.4 feet)
xiv)	Tower separation distance Building A and Building B (minimum)	17.5 metres (57.4 feet)
xv)	Tower floor plate for Building A and Building B above the podium - excluding balconies (maximum)	1,000 square metres
xvi)	Tower floor plate for Building A and Building B above the podium - including balconies (maximum)	1,250 square metres

xvii) The 33-storey height shall be located within 50 metres (164 feet) of the right-of-way of Oxford Street West or Wonderland Road North

xviii) Additional Permitted Uses in the CSA4 zone to be located within the second floor (public street level) of the development (Z.-1-243218)

R9-7(53) 323 Oxford Street West (Block 1)

a) Additional Permitted Uses

i) Cluster stacked townhouse
ii) Cluster townhouses
iii) Uses permitted in the NSA3 Zone variation

b) Regulations

i)	South Property Line (Oxford Street West)	
	(maximum)	6.0 metres (19.68 feet)
	(minimum)	0.0 metres (0.0 feet)
ii)	West Property Line (Beaverbrook Avenue)	
	(maximum)	6.0 metres (19.68 feet)
	(minimum)	3.0 metres (9.84 feet)
iii)	North Property Line (Westfield Drive)	
	(maximum)	6.0 metres (19.68 feet)
	(minimum)	3.0 metres (9.84 feet)
iv)	East Property Line	
	(maximum)	6.0 metres (19.68 feet)
	(minimum)	12.5 metres (41.0 feet) above 8th storey
v)	Density (maximum)	305uph (123 units/acre)
vi)	Height (maximum)	For apartments with frontage on Oxford StreetWest 60.0 metres (197 feet) (18 storeys) For apartments with frontage on Westfield Drive 46.0 metres (151 feet) (14 storeys) Other apartments with development

		block 51.0 metres (maximum) (16 storeys)
vii)	Built Form Along Streetscape (minimum)	50%
viii)	Building Stepback After 4th Storey (minimum)	3.0 metres (9.8 feet)
ix)	Point Tower Floorplate For Towers with frontage on Oxford Street (maximum)	1,000 square metres (10,763.91 sq ft)
x)	Tower Separation (minimum)	25.0 metres (82 feet)
xi)	Lot Coverage (maximum)	45%
xii)	Landscape Open Space (minimum) (Z.-1-243226)	30%

R9-7(54) 323 Oxford Street West (Block 2)

a) Additional Permitted Uses

i) Cluster stacked townhouse
ii) Cluster townhouses

b) Regulations

i)	Front Yard (maximum) (minimum)	 6.0 metres (19.7 feet) 0.0 metres (0.0 feet)
ii)	Exterior Yard (maximum) (minimum)	 6.0 metres (19.7 feet) 3.0 metres (9.8 feet)
iii)	North Property Line (minimum)	3.0 metres (9.8 feet)
iv)	East Property Line (maximum) (minimum)	 6.0 metres (19.7 feet) 12.5 metres (41.0 feet) above 8th storey
v)	Density (maximum)	242uph (98 units/acre)
vi)	Height (maximum)	46.0 metres (151 feet) (14 storeys)
vii)	Built Form Along Streetscape (minimum)	50%
viii)	Building Stepback After 4th Storey (minimum)	3.0 metres (9.8 feet)
ix)	Tower Separation (minimum)	25.0 metres (82 feet)
x)	Lot Coverage (maximum)	45%
xi)	Landscape Open Space (minimum) (Z.-1-243226)	30%

R9-7(55) 323 Oxford Street West (Block 3)

a) Additional Permitted Uses

i) Cluster stacked townhouse
ii) Cluster townhouses

b) Regulations

Setbacks for Apartment Buildings

i)	Front Yard (maximum) (minimum)	 6.0 metres (19.7 feet) 3.0 metres (9.8 feet)
ii)	Exterior Yard (maximum) (minimum)	 6.0 metres (19.7 feet) 3.0 metres (9.8 feet)
iii)	Interior Yard (minimum)	5.0 metres (16.4 feet)
iv)	Rear Yard (minimum)	5.0 metres (16.4 feet)

Setbacks for Townhouse Dwellings

v)	Front Yard (minimum)	3.0 metres (9.8 feet)
vi)	Exterior Yard (minimum)	3.0 metres (9.8 feet)
vii)	Interior Yard (minimum)	1.5 metres (5.0 feet)
viii)	Rear Yard (minimum)	3.0 metres (9.8 feet)
ix)	Density (maximum)	230uph (93 units/acre)
xii)	Height (maximum)	20.0 metres (66 feet) (6 storeys)
xiii)	Built Form Along Streetscape (minimum)	50%
xiv)	Lot Coverage (maximum)	45%
xv)	Landscape Open Space (minimum) (Z.-1-243226)	30%

R9-7(56) 323 Oxford Street West (Block 6)

a) Additional Permitted Uses

i) Cluster stacked townhouse
ii) Cluster townhouses

b) Regulations

Setbacks for Apartment Buildings

i)	Front Yard (maximum) (minimum)	 6.0 metres (19.7 feet) 3.0 metres (9.8 feet)
ii)	Exterior Yard (maximum) (minimum)	 6.0 metres (19.7 feet) 3.0 metres (9.8 feet)
iii)	East Interior Yard (minimum)	3.0 metres (9.8 feet)
iv)	South Rear Yard	6.0 metres (19.7 feet)

	(minimum)	

Setbacks for Townhouse Dwellings

v)	Front Yard (minimum)	3.0 metres (9.8 feet)
vi)	Exterior Yard (minimum)	3.0 metres (9.8 feet)
vii)	Interior Yard (minimum)	1.5 metres (5.0 feet)
viii)	Rear Yard (minimum)	3.0 metres (9.8 feet)
ix)	Density (maximum)	240uph (97 units/acre)
x)	Height (maximum)	40.0 metres (131.0 feet) (13 storeys)
xi)	Building Stepback After 4th Storey (minimum)	3.0 metres (9.8 feet)
xii)	Tower Separation (minimum)	25.0 metres (82 feet)
xiii)	Built Form Along Streetscape (minimum)	50%
xiv)	Lot Coverage (maximum)	45%
xv)	Landscape Open Space (minimum) (Z.-1-243226)	30%

R9-7(57) 323 Oxford Street West (Block 7)

a) Additional Permitted Uses

i) Cluster stacked townhouse
ii) Cluster townhouses

b) Regulations

Setbacks for Apartment Buildings

i)	Front Yard (maximum) (minimum)	6.0 metres (19.7 feet) 3.0 metres (9.8 feet)
ii)	North Rail Line (minimum)	30.0 metres (98.0 feet)
iii)	North Property Line (minimum)	3.0 metres (9.8 feet)

Setbacks for Townhouse Dwellings

iv)	Front Yard (minimum)	3.0 metres (9.8 feet)
v)	West Property Line (minimum)	5.0 metres (16.4 feet)
vi)	North Property Line (minimum)	3.0 metres (9.8 feet)
vii)	Density (maximum)	200uph (81 units/acre)
viii)	Height (maximum)	13.0m (4 storeys) within 72 metres of the west property

		boundary; otherwise, 40 metres (13 storeys)
ix)	Building Stepback After 4th Storey (minimum)	3.0 metres (9.8 feet)
x)	Tower Separation (minimum)	25.0 metres (82 feet)
xi)	Built Form Along Streetscape (minimum)	50%
xii)	Lot Coverage (maximum)	45%
xiii)	Landscape Open Space (minimum) (Z.-1-243226)	30%

R9-7(58) 359 Wellington Road & 657 Base Line Road East

a) Regulations

i) Height (maximum): 75 metres

ii) Density (maximum): 1391 units per hectare

iii) Front Yard Setback (minimum) from the ultimate ROW of Wellington Road: 0.8 metres

iv) Exterior Side Yard Setback (minimum): 0.8 metres

v) Interior Side Yard Setback - south (minimum): 1.5 metres

vi) Rear Yard Setback – main building (minimum): 8.4 metres

vii) Rear Yard Setback – parking garage (minimum): 0.3 metres

viii) Landscaped Open Space (% minimum): 14%

ix) Lot coverage (maximum): 65%, excluding canopies

x) Building floor plate above the 6th storey: 800 square metres

xi) Tower setback above the 6th storey – south (minimum): 10 metres

xii) Tower setback above the 6th storey – west (minimum): 11.5 metres

xiii) Interior amenity space (minimum): 400m^2

xiv) Common outdoor amenity space – rooftop (minimum): 150m^2

xv) Percentage of units to be 2 or more bedrooms (minimum): 30%

xvi) Ground floor height (minimum) fronting public streets: 4.0 metres

xvii) Principal Building Entrance shall face towards intersection of Wellington Road and Base Line Road East

xviii) To permit unlimited encroachments for balconies and canopies.
(Z.-1-243234)

R9-7(59)

a) Additional Permitted Uses:

i) Permitted uses of the NSA1, NSA2 and NSA5 Zone may be permitted within the ground floor of a mixed-use building.

b) Regulations:

i)	North Yard Depth	1.0 metre (Minimum)

		8.0 metres (Maximum)
ii)	West Yard Depth	3.0 metres (Minimum) 8.0 metres (Maximum)
iii)	South Yard Depth	3.0 metres (Minimum) 8.0 metres (Maximum)
iv)	East Yard Depth	3.0 metres (Minimum) 8.0 metres (Maximum)
v)	Height	1 storey (Minimum) 6 storeys (Maximum)

vi) A maximum of 2000 square metres commercial gross floor area may be permitted within the zone boundaries.

vii) Commercial gross floor area shall be confined to portions of the site within a 100-metre radius of the intersection of Wonderland Road North and Sunningdale Road West

viii) No parking or drive aisles shall be located between a building and the adjacent street line.

ix) Where more than one building is to be developed, the maximum yard depths shall only apply to the building nearest to the lot line shared with the street. (Z.-1-243246)

R9-7(60) 80 & 82 Base Line Road West

a) Regulations

i) Front Yard Setback (minimum): 1.3 metres

ii) Interior (East) Side Yard Setback (minimum): 5.4 metres

iii) Interior (West) Side Yard Setback (minimum): 5.8 metres

iv) Interior (West) Side Yard Encroachment (maximum): 4.9 metres

v) Landscape Open Space (minimum): 29%

vi) Density (maximum): 386 units per hectare

vii) Height (maximum): 30.0 metres

viii) Vehicle Parking Spaces (minimum): 22 spaces (Z.-1-243250)

R9-7(61) 850 Highbury Avenue North
(Transit Oriented Corridor - Policy Area 1A)

a) Permitted Uses

i) Apartment buildings, group home type 2, handicapped persons apartment buildings, lodging house class 2, senior citizen apartment buildings, and continuum-of-care facilities with dwelling units restricted to the rear portion of the ground floor, the exterior side portion of the ground floor with frontage on a Neighbourhood Connector or Neighbourhood Street, and the second floor or above, with any of the other uses in the front portion of the ground floor:

a) Animal clinics;

b) Art galleries;
c) Artisan workshop
d) Assembly halls;
e) Bake shops;
f) Boutique;

g) Brewing on premises establishment;
h) Catalogue stores;
i) Cinemas;
j) Commercial recreation establishments;
k) Commercial schools;
l) Convenience service establishments;
m) Convenience stores;
n) Craft brewery;
o) Day care centres;
p) Delicatessens;
q) Dry cleaning and laundry depots;
r) Duplicating shops;
s) Film processing depots;
t) Financial institutions;
u) Florist shops;
v) Funeral homes;
w) Gift shops;
x) Grocery stores;
y) Hair dressing establishments;
z) Hotels;
aa) Institutions;
bb) Laboratories;
cc) Laundromats;
dd) Libraries;
ee) Liquor, beer and wine stores;
ff) Medical/dental offices;
gg) Museums;
hh) Offices;
ii) Personal service establishments;
jj) Place of entertainment;
kk) Private clubs;
ll) Private schools;
mm) Repair and rental establishments;
nn) Restaurants, outdoor patio;
oo) Restaurants;
pp) Retail stores;
qq) Service and repair establishments;
rr) Studios;
ss) Supermarkets;
tt) Taverns;
uu) Theatres;
vv) Video rental establishments.

b) Regulations:

i) Office Gross Floor Area (Maximum) – 5,000 square metres (53,820 square feet)

ii) Floor Area Ratio (Maximum) – 5.25

iii) Front and Exterior Side Yard Depth (Minimum) – 1.0 metres (3.3 feet)

iv) Rear Yard Depth (Minimum) – 3.0 metres (9.8 feet), or 1.0 metres (3.3 feet) where the rear lot line abuts a public street.

v) Interior Side Yard Depth (Minimum) – 3.0 metres (9.8 feet)

vi) First Storey Height (Minimum) – 4.0 metres (13.1 feet)

vii) Height (Minimum) – The lesser of 3-storeys or 9.0 metres (29.5 feet)

viii) Height (Maximum) – 105 metres (345 feet)

ix) Density Units Per Hectare (Minimum) – 45 units per hectare (18.2 units per acre)

x) Density Units Per Hectare (Maximum) – None

xi) Landscaped Open Space (Minimum) – 30%

xii) Coverage (Maximum) – 60%

xiii) Amenity Area (Minimum) – 6.0 square metres (64.6 square feet) per residential unit

c) Front Lot Line: Oxford Street East shall be deemed to be the front lot line.

d) Floor Area Ratio: For the purposes of calculating the Floor Area Ratio, the Floor Area shall not include area used for parking or loading within the main building.

e) Location of Parking: Surface parking is not permitted in the front and exterior side yard. Ground-floor structured parking is not permitted adjacent to a public right-of-way.

f) Drive Through Facilities: Drive-through facilities, either as a main or accessory use, are not permitted.

g) Required Ground Floor Uses for Artisan Workshop and Craft Brewery: Where located on the ground floor with street front access, Artisan Workshop and Craft Brewery uses shall include a retail store or restaurant that:

i) is located within the main building or unit occupied by the Artisan Workshop or Craft Brewery use;

ii) is a minimum of 10% of the gross floor area (GFA) of the main building or unit;

iii) is located within the front portion of the ground floor; and,

iv) is accessible via the front of the building. (Z.-1-243254)

R9-7(62) 850 Highbury Avenue North
(Transit Oriented Corridor - Policy Area 1B)

a) Permitted Uses

i) Apartment buildings, group home type 2, handicapped persons apartment buildings, lodging house class 2, senior citizen apartment buildings, and continuum-of-care facilities with dwelling units restricted to the rear portion of the ground floor, the exterior side portion of the ground floor with frontage on a Neighbourhood Connector or Neighbourhood Street, and the second floor or above, with any of the other uses in the front portion of the ground floor:

a) Animal clinics;

b) Art galleries;
c) Artisan workshop
d) Assembly halls;
e) Bake shops;
f) Boutique;
g) Brewing on premises establishment;
h) Catalogue stores;
i) Cinemas;
j) Commercial recreation establishments;
k) Commercial schools;
l) Convenience service establishments;
m) Convenience stores;
n) Craft brewery;

o) Day care centres;
p) Delicatessens;
q) Dry cleaning and laundry depots;
r) Duplicating shops;
s) Film processing depots;
t) Financial institutions;
u) Florist shops;
v) Funeral homes;
w) Gift shops;
x) Grocery stores;
y) Hair dressing establishments;
z) Hotels;
aa) Institutions;
bb) Laboratories;
cc) Laundromats;
dd) Libraries;
ee) Liquor, beer and wine stores;
ff) Medical/dental offices;
gg) Museums;
hh) Offices;
ii) Personal service establishments;
jj) Place of entertainment;
kk) Private clubs;
ll) Private schools;
mm) Repair and rental establishments;
nn) Restaurants, outdoor patio;
oo) Restaurants;
pp) Retail stores;
qq) Service and repair establishments;
rr) Studios;
ss) Supermarkets;
tt) Taverns;
uu) Theatres;
vv) Video rental establishments.

b) Regulations:

i) Office Gross Floor Area (Maximum) – 5,000 square metres (53,820 square feet)

ii) Floor Area Ratio (Maximum) – 4.0

iii) Front and Exterior Side Yard Depth (Minimum) – 1.0 metres (3.3 feet)

iv) Rear Yard Depth (Minimum) – 3.0 metres (9.8 feet), or 1.0 metres (3.3 feet) where the rear lot line abuts a public street.

v) Interior Side Yard Depth (Minimum) – 3.0 metres (9.8 feet)

vi) First Storey Height (Minimum) – 4.0 metres (13.1 feet)

vii) Height (Minimum) – The lesser of 3-storeys or 9.0 metres (29.5 feet)

viii) Height (Maximum) – 98 metres (321.5 feet)

ix) Density Units Per Hectare (Minimum) – 45 units per hectare (18.2 units per acre)

x) Density Units Per Hectare (Maximum) – None

xi) Landscaped Open Space (Minimum) – 30%

xii) Coverage (Maximum) – 60%

xiii) Amenity Area (Minimum) – 6.0 square metres (64.6 square feet) per residential unit

c) Front Lot Line: The Rapid Transit Boulevard (Highbury Avenue North or Oxford Street East) shall be deemed to be the front lot line.

d) Floor Area Ratio: For the purposes of calculating the Floor Area Ratio, the Floor Area shall not include area used for parking or loading within the main building.

e) Location of Parking: Surface parking is not permitted in the front and exterior side yard. Ground-floor structured parking is not permitted adjacent to a public right-of-way.

f) Drive Through Facilities: Drive-through facilities, either as a main or accessory use, are not permitted.

g) Required Ground Floor Uses for Artisan Workshop and Craft Brewery: Where located on the ground floor with street front access, Artisan Workshop and Craft Brewery uses shall include a retail store or restaurant that:

i) is located within the main building or unit occupied by the Artisan Workshop or Craft Brewery use;

ii) is a minimum of 10% of the gross floor area (GFA) of the main building or unit;

iii) is located within the front portion of the ground floor; and,

iv) is accessible via the front of the building.
(Z.-1-243254)

R9-7(63) 850 Highbury Avenue North
(Transit Oriented Corridor - Policy Area 2B)

a) Permitted Uses

i) Apartment buildings, group home type 2, handicapped persons apartment buildings, lodging house class 2, senior citizen apartment buildings, and continuum-of-care facilities with dwelling units restricted to the rear portion of the ground floor, the exterior side portion of the ground floor with frontage on a Neighbourhood Connector or Neighbourhood Street, and the second floor or above, with any of the other uses in the front portion of the ground floor:

a) Animal clinics;

b) Art galleries;
c) Artisan workshop
d) Assembly halls;
e) Bake shops;
f) Boutique;
g) Brewing on premises establishment;
h) Catalogue stores;
i) Cinemas;
j) Commercial recreation establishments;
k) Commercial schools;
l) Convenience service establishments;
m) Convenience stores;
n) Craft brewery;
o) Day care centres;
p) Delicatessens;
q) Dry cleaning and laundry depots;
r) Duplicating shops;
s) Film processing depots;
t) Financial institutions;
u) Florist shops;
v) Funeral homes;
w) Gift shops;

x) Grocery stores;
y) Hair dressing establishments;
z) Hotels;
aa) Institutions;
bb) Laboratories;
cc) Laundromats;
dd) Libraries;
ee) Liquor, beer and wine stores;
ff) Medical/dental offices;
gg) Museums;
hh) Offices;
ii) Personal service establishments;
jj) Place of entertainment;
kk) Private clubs;
ll) Private schools;
mm) Repair and rental establishments;
nn) Restaurants, outdoor patio;
oo) Restaurants;
pp) Retail stores;
qq) Service and repair establishments;
rr) Studios;
ss) Supermarkets;
tt) Taverns;
uu) Theatres;
vv) Video rental establishments.

b) Regulations:

i) Office Gross Floor Area (Maximum) – 5,000 square metres (53,820 square feet)

ii) Floor Area Ratio (Maximum) – 3.5

iii) Front and Exterior Side Yard Depth (Minimum) – 1.0 metres (3.3 feet)

iv) Rear Yard Depth (Minimum) – 3.0 metres (9.8 feet), or 1.0 metres (3.3 feet) where the rear lot line abuts a public street.

v) Interior Side Yard Depth (Minimum) – 3.0 metres (9.8 feet)

vi) First Storey Height (Minimum) – 4.0 metres (13.1 feet)

vii) Height (Minimum) – The lesser of 3-storeys or 9.0 metres (29.5 feet)

viii) Height (Maximum) – 82 metres (269 feet)

ix) Density Units Per Hectare (Minimum) – 45 units per hectare (18.2 units per acre)

x) Density Units Per Hectare (Maximum) – None

xi) Landscaped Open Space (Minimum) – 30%

xii) Coverage (Maximum) – 60%

xiii) Amenity Area (Minimum) – 6.0 square metres (64.6 square feet) per residential unit

c) Front Lot Line: Oxford Street East shall be deemed to be the front lot line.

d) Floor Area Ratio: For the purposes of calculating the Floor Area Ratio, the Floor Area shall not include area used for parking or loading within the main building.

e) Location of Parking: Surface parking is not permitted in the front and exterior side yard. Ground-floor structured parking is not permitted adjacent to a public right-of-way.

f) Drive Through Facilities: Drive-through facilities, either as a main or accessory use, are not permitted.

g) Required Ground Floor Uses for Artisan Workshop and Craft Brewery: Where located on the ground floor with street front access, Artisan Workshop and Craft Brewery uses shall include a retail store or restaurant that:

i) is located within the main building or unit occupied by the Artisan Workshop or Craft Brewery use;

ii) is a minimum of 10% of the gross floor area (GFA) of the main building or unit;

iii) is located within the front portion of the ground floor; and,

iv) is accessible via the front of the building.
(Z.-1-243254)

R9-7(64) 850 Highbury Avenue North
(Transit Oriented Corridor - Policy Area 2A)

a) Permitted Uses

i) Apartment buildings, group home type 2, handicapped persons apartment buildings, lodging house class 2, senior citizen apartment buildings, and continuum-of-care facilities with dwelling units restricted to the rear portion of the ground floor, the exterior side portion of the ground floor with frontage on a Neighbourhood Connector or Neighbourhood Street, and the second floor or above, with any of the other uses in the front portion of the ground floor:

a) Animal clinics;
b) Art galleries;
c) Artisan workshop
d) Assembly halls;
e) Bake shops;
f) Boutique;
g) Brewing on premises establishment;
h) Catalogue stores;
i) Cinemas;
j) Commercial recreation establishments;
k) Commercial schools;
l) Convenience service establishments;
m) Convenience stores;
n) Craft brewery;
o) Day care centres;
p) Delicatessens;
q) Dry cleaning and laundry depots;
r) Duplicating shops;
s) Film processing depots;
t) Financial institutions;
u) Florist shops;
v) Funeral homes;
w) Gift shops;
x) Grocery stores;
y) Hair dressing establishments;
z) Hotels;
aa) Institutions;
bb) Laboratories;
cc) Laundromats;
dd) Libraries;
ee) Liquor, beer and wine stores;
ff) Medical/dental offices;

gg) Museums;
hh) Offices;
ii) Personal service establishments;
jj) Place of entertainment;
kk) Private clubs;
ll) Private schools;
mm) Repair and rental establishments;
nn) Restaurants, outdoor patio;
oo) Restaurants;
pp) Retail stores;
qq) Service and repair establishments;
rr) Studios;
ss) Supermarkets;
tt) Taverns;
uu) Theatres;
vv) Video rental establishments.

b) Regulations:

i) Office Gross Floor Area (Maximum) – 5,000 square metres (53,820 square feet)

ii) Floor Area Ratio (Maximum) – 3.0

iii) Front and Exterior Side Yard Depth (Minimum) – 1.0 metres (3.3 feet)

iv) Rear Yard Depth (Minimum) – 3.0 metres (9.8 feet), or 1.0 metres (3.3 feet) where the rear lot line abuts a public street.

v) Interior Side Yard Depth (Minimum) – 3.0 metres (9.8 feet)

vi) First Storey Height (Minimum) – 4.0 metres (13.1 feet)

vii) Height (Minimum) – The lesser of 3-storeys or 9.0 metres (29.5 feet)

viii) Height (Maximum) – 66 metres (217 feet)

ix) Density Units Per Hectare (Minimum) – 45 units per hectare (18.2 units per acre)

x) Density Units Per Hectare (Maximum) – None

xi) Landscaped Open Space (Minimum) – 30%

xii) Coverage (Maximum) – 60%

xiii) Amenity Area (Minimum) – 6.0 square metres (64.6 square feet) per residential unit

c) Front Lot Line: Highbury Avenue North shall be deemed to be the front lot line.

d) Floor Area Ratio: For the purposes of calculating the Floor Area Ratio, the Floor Area shall not include area used for parking or loading within the main building.

e) Location of Parking: Surface parking is not permitted in the front and exterior side yard. Ground-floor structured parking is not permitted adjacent to a public right-of-way.

f) Drive Through Facilities: Drive-through facilities, either as a main or accessory use, are not permitted.

g) Required Ground Floor Uses for Artisan Workshop and Craft Brewery: Where located on the ground floor with street front access, Artisan Workshop and Craft Brewery uses shall include a retail store or restaurant that:

i) is located within the main building or unit occupied by the Artisan Workshop or Craft Brewery use;

ii) is a minimum of 10% of the gross floor area (GFA) of the main building or unit;

iii) is located within the front portion of the ground floor; and,

iv) is accessible via the front of the building.
(Z.-1-243254)

R9-7(65) 850 Highbury Avenue North
(Residential - Policy Area 1B)

a) Permitted Uses

i) Apartment buildings;

ii) Handicapped persons apartment buildings;

iii) Lodging house class 2;

iv) Stacked townhousing;

v) Senior citizens apartment buildings;

vi) Continuum-of-care facilities

vii) Apartment buildings, group home type 2, handicapped persons apartment buildings, lodging house class 2, senior citizen apartment buildings, and continuum-of-care facilities with dwelling units restricted to the rear portion of the ground floor, the exterior side portion of the ground floor with frontage on a Neighbourhood Connector or Neighbourhood Street, and the second floor or above, with any of the other uses in the front portion of the ground floor:

a) Animal clinics;
b) Art galleries;
c) Artisan Workshop
d) Assembly halls;
e) Bake shops;
f) Boutique;
g) Brewing on premises establishment;
h) Catalogue stores;
i) Cinemas;
j) Commercial recreation establishments;
k) Commercial schools;
l) Convenience service establishments;
m) Convenience stores;
n) Craft brewery;
o) Day care centres;
p) Delicatessens;
q) Dry cleaning and laundry depots;
r) Duplicating shops;
s) Film processing depots;
t) Financial institutions;
u) Florist shops;
v) Funeral homes;
w) Gift shops;
x) Grocery stores;
y) Hair dressing establishments;
z) Hotels;
aa) Institutions;
bb) Laboratories;
cc) Laundromats;
dd) Libraries;
ee) Liquor, beer and wine stores;
ff) Medical/dental offices;
gg) Museums;

hh) Offices;
ii) Personal service establishments;
jj) Place of entertainment;
kk) Private clubs;
ll) Private schools;
mm) Repair and rental establishments;
nn) Restaurants, outdoor patio;
oo) Restaurants;
pp) Retail stores;
qq) Service and repair establishments;
rr) Studios;
ss) Supermarkets;
tt) Taverns;
uu) Theatres;
vv) Video rental establishments.

b) Regulations:

i) Floor Area Ratio (Maximum) – 3.0

ii) Front and Exterior Side Yard Depth (Minimum) – 2.0 metres (6.6 feet)

iii) Rear Yard Depth (Minimum) – 3.0 metres (9.8 feet)

iv) Interior Side Yard Depth (Minimum) – 3.0 metres (9.8 feet)

v) First Storey Height (Minimum) – 4.0 metres (13.1 feet)

vi) Height (Minimum) – The lesser of 3-storeys or 9.0 metres (29.5 feet)

vii) Height (Maximum) – 66 metres (217 feet)

viii) Density Units Per Hectare (Minimum) – 45 units per hectare (18.2 units per acre)

ix) Density Units Per Hectare (Maximum) – None

x) Amenity Area (Minimum) – 6.0 square metres (64.6 square feet) per residential unit)

c) Floor Area Ratio: For the purposes of calculating the Floor Area Ratio, the Floor Area shall not include area used for parking or loading within the main building.

d) Location of Parking: Surface parking is not permitted in the front and exterior side yard. Ground-floor structured parking is not permitted adjacent to a public right-of-way.

e) Drive Through Facilities: Drive-through facilities, either as a main or accessory use, are not permitted.

f) Required Ground Floor Uses for Artisan Workshop and Craft Brewery: Where located on the ground floor with street front access, Artisan Workshop and Craft Brewery uses shall include a retail store or restaurant that:

i) is located within the main building or unit occupied by the Artisan Workshop or Craft Brewery use;

ii) is a minimum of 10% of the gross floor area (GFA) of the main building or unit;

iii) is located within the front portion of the ground floor; and,

iv) is accessible via the front of the building.
(Z.-1-243254)

R9-7(66) 2118 Richmond Street

a) Regulations

i) Exterior Side Yard Depth (Minimum) – 9 metres

ii) Interior Side Yard Depth (Minimum) – 12 metres

iii) Rear Yard Depth (Minimum) – 13 Metres

iv) Landscaped Open Space (Minimum) – 48.4%

v) Lot Coverage (Maximum) – 28%

vi) Height (Maximum) – 40 metres

vii) Density (Maximum) – 211 units per hectare

viii) Building Setback from Sunningdale Road East Above the Third Floor (Minimum) – 21 metres

ix) Building Setback from Sunningdale Road East Above the Eighth Floor (Minimum) – 29 metres
(Z.-1-243258)

R9-7(67) 1856-1910 Oxford Street West

a) Additional Permitted Uses

i) Mixed-use apartment buildings

ii) All permitted uses within the CSA5 Zone variation on the ground floor of an apartment building and regulated by the Residential R9 Zone

b) Regulations

i) The front lot line shall be deemed to be Oxford Street West

ii) Exterior Side Yard Depth (Minimum): 5 metres

iii) Rear Yard Depth (Minimum): 5 metres

iv) Landscaped Open Space (Minimum): 20%

v) Building Height (Maximum): 40 metres

vi) Commercial Gross Floor Area within mixed use buildings (Maximum): 850 square metres

vii) Encroachments for Balconies and Canopies: Unlimited
(Z.-1-243261)

R9-7(68) 1472 Dundas Street

a) Additional Permitted Uses:

i) Uses permitted on the ground floor of an Apartment Building

a. Office
b. Retail Store
c. Convenience Store
d. Financial Institution
e. Medical/Dental Office
f. Restaurant
g. Personal Service Establishment

b) Regulations:

i) Front Yard Setback (minimum) – 4.0 metres

ii) Interior (East) Side Yard Setback (minimum) – 6.0 metres

iii) Density (maximum) – 350 units per hectare

iv) Lot Coverage (maximum) – 40%

v) Height (maximum) –35.0 metres or 10 storeys, whichever is less

vi) Amenity Area – indoor and outdoor (minimum) – 4.0 square metres per unit

vii) Ground Floor Height (minimum) – 4.0 metres

viii) Ground Floor Height (maximum) – 4.5 metres

ix) Podium Height (minimum) – 7.0 metres or 2 storeys, whichever is greater

x) Podium Height (maximum) – 13.5 metres or 4 storeys, whichever is less

xi) Street Orientation – the principal residential lobby entrance shall be located on the Dundas Street-facing façade

xii) Front Building Stepback Above the 4th Storey (minimum) – 3.0 metres

xiii) Interior Side and Rear Building Stepbacks Above the 4th Storey (minimum) – 1.5 metres

xiv) Building Stepback Above the 8th Storey (minimum) – 1.5 metres (Z.-1-253271)

R9-7(69) 75-91 Southdale Road East

a) Regulations:

i) For the purposes of zoning, Petty Road is deemed to be the front lot line.

ii) Front Yard Setback (minimum) – 2.0 metres

iii) Interior (South) Side Yard Setback (minimum) – 2.4 metres

iv) Rear Yard Setback (minimum) – 2.4 metres

v) Setback above the 1st storey from southerly property line – 8.0 metres

vi) Density (maximum) – 224 units per hectare

vii) Landscaped Open Space (minimum) – 24%

viii) Lot Coverage (maximum) – 58%

ix) Height (maximum) – 25.0 metres

x) Balcony Projections in Front Yard (maximum) – 0.0 metres to the lot line.

xi) Canopy and Architectural Features Projection (maximum) – 0.5 metres to the lot line.

xii) Street Orientation – the principal residential lobby entrance shall be located on the Petty Street-facing façade. (Z.-1-253300)

R9-7(70) 801 Sarnia Road

a) Regulations

i) Front and Exterior Side Yard Depth (Minimum) – 1.5 metres

ii) Rear Yard Depth (Minimum) – 13.0 metres

iii) Interior Side Yard Depth (Minimum) – 11.4 metres

iv) Landscaped Open Space (Minimum) – 24%

v) Lot Coverage (Maximum) – 36%

vi) Density (Maximum) – 270 units per hectare

vii) Height (Maximum) – 30.0 metres

viii) Notwithstanding Section 4.27, a canopy on an apartment building may be permitted to encroach up to 1.5 metres into the required front yard and interior side yard. (Z.-1-253309; replaced by Z.-1-253326)

R9-7(71) 1206 Oxford Street East

a) Additional Permitted Uses

i) Mixed-use buildings

ii) Any use permitted in the RSC4 and RSC6 Zone variations, restricted to the ground floor of an apartment building (Z.-1-253324)

R9-7(72) 299-307 Sarnia Road

a) Regulations

i) Front Yard Depth (Minimum) – 3.0 metres

ii) Rear Yard Depth (Minimum) – 12.4 metres

iii) Interior Side Yard Depth (Minimum) – 12.0 metres

iv) Lot Coverage (Maximum) – 60%

v) Height (Maximum) – 20.0 metres

vi) Ground Floor Height (Minimum) – 4.5 metres

vii) Balcony and Canopy Projections in Front Yard (Maximum) – 1.5 metres to the lot line

viii) Building Step Back above the 4th storey – east and west facades (Minimum) – 1.7 metres (Z.-1-253325)

R9-7(73) 1225 Wonderland Road North

c) Regulations:

i) Lot Frontage (minimum) – 0.0 metres

ii) Interior (North) Side Yard Setback (minimum) – 8.0 metres

iii) Interior (West) Side Yard Setback (minimum) – 10.0 metres

iv) Density (maximum) – 230 units per hectare

v) Height (maximum) – 30.0 metres

vi) Long Term Bicycle Parking Spaces (minimum) – 175 spaces

vii) Ground Floor Height (minimum) – 4.5 metres

viii) Step back above the 7th storey from the edge of the north and south façades (minimum) – 1.8 metres (Z.-1-253339)

R9-7(74) 6309 Pack Road

a) Regulations

i) Front Yard Setback from Arterial Roads (Minimum) - 1.0 metres

ii) Front Yard Setback from Arterial Roads (Maximum) – 10.0 metres

iii) Front and Exterior Side Yard Setbacks on all other roads (Minimum) – 6.0 metres

iv) Interior Side Yard Setback (Minimum) – 0.25 metres for every 1.0 metres of height, not in no case less than 4.5 metres

v) Height (Maximum) – varies from 20 metres to 50 metres, refer to Zoning Map

vi) Density (Maximum) – 200 to 300 units per hectare, refer to Zoning Map (Z.-1-253340)

R9-7(75) 590 Gainsborough Road

a) Additional Permitted Uses:

i) Daycare centre within an apartment building

b) Regulations

i) For the purposes of zoning, the front lot line is deemed to be Gainsborough Road.
ii) Front Yard Depth (minimum): 3.0 metres
iii) Exterior Side Yard Depth (minimum):3.0 metres
iv) Interior Side Yard Depth (minimum): 8.0 metres
v) Building Height (maximum): 8-storeys (32.0 metres)
vi) Density (maximum): 270 units per hectare
vii) Ground Floor Height (minimum): 4.0 metres
(Z.-1-253374)

R9-7(76) 1511 Clarke Road

a) Regulations

i) Front and Exterior Side Yard Depth for all roads (minimum) – 4.5 metres
ii) Rear and Interior Side Yard Depth (minimum) – 6.0 metres
iii) Lot coverage (maximum) – 40%
iv) Height (maximum) – 40 metres (10 storeys)
v) Density (maximum) – 150 unit per hectare
(Z.-1-253375)

R9-7(77) 3563 Bostwick Road – North and East Portions of Blocks 1, 2 & 4

a) Additional Permitted Uses

i) Stacked townhouses;

ii) Townhouses; and

iii) Apartment buildings, handicapped persons apartment buildings, lodging house class 2, senior citizen apartment buildings, and continuum-of-care facilities with any of the other uses listed below on the ground floor:

a) Animal clinics;
b) Art galleries;
c) Artisan Workshop
d) Bake shops;
e) Boutique;
f) Catalogue stores;
g) Commercial recreation establishments;
h) Commercial schools;
i) Convenience service establishments;
j) Convenience stores;
k) Day care centres;
l) Delicatessens;
m) Duplicating shops;
n) Financial institutions;
o) Florist shops;
p) Gift shops;
q) Grocery stores;
r) Hair dressing establishments;
s) Institutions;
t) Laundromats;
u) Libraries;
v) Liquor, beer and wine stores;
w) Medical/dental offices;
x) Museums;
y) Offices;
z) Personal service establishments;
aa) Place of entertainment;
bb) Private clubs;
cc) Private schools;
dd) Repair and rental establishments;
ee) Restaurants, outdoor patio;

ff) Restaurants;
gg) Retail stores;
hh) Service and repair establishments;
ii) Studios;
jj) Supermarkets;
kk) Taverns;
ll) Video rental establishments

b) Regulations

i) Front and Exterior Side Yard Depth (Minimum) - 3.0 metres

ii) Rear Yard Depth, abutting a public street (Minimum) - 3.0 metres

iii) Interior Site Yard Depth (Minimum) - 0.25 metres for every 1.0 metres of height, not in no case less than 4.5 metres.

iv) Density (Minimum) - 30 units per hectare

v) Density (Maximum) - 250 units per hectare

vi) Height (Minimum) - the greater of 7.5 metres or 2 storeys

vii) Height (Maximum) - the lesser of 56 metres or 16 storeys

viii) First Storey Height (Minimum) - 4.0 metres

c) Notwithstanding Section 3.9 2) of the Zoning By-Law, where a lot is divided into two or more R9-7(77) and R9-3(26) zones, each such portion of the said lot shall not be considered a separate lot as defined herein. No minimum required yard shall be required from the dividing zone boundary, and the maximum height and maximum density in each zone shall continue to apply to all buildings within the zone.
(Z.-1-253388)

R9-7(78) 870 Jalna Boulevard

a) Additional Permitted Uses:

i) Day Care Centre restricted to the ground floor of an apartment building.

b) Regulations:

i) Front Yard Depth (minimum): 3.0 metres
ii) Height (maximum): 28.0 metres
iii) Ground Floor Height (minimum): 4.0 metres
iv) Density (maximum): 170 units per hectare
v) Landscaped Open Space (minimum): 25%
vi) Stepback Above the 6th Storey from the front edge of the podium (minimum): 2.5 metres
(Z.-1-263395)

R9-7(79) 1040 Hamilton Road (Block 4)

a) Regulations

i) Front and Exterior Side Yard Depth (minimum) – 3.0 metres
ii) Interior Side Yard Depth (minimum) – 4.5 metres
iii) Height (maximum) – the lesser of 18.0 metres or 5-storeys
iv) Density (maximum) – 290 units per hectare
(Z.-1-263405)

R9-7(80) 1040 Hamilton Road (Block 5)

a) Regulations

i) Front and Exterior Side Yard Depth (minimum) – 3.0 metres

ii) Height (maximum) – the lesser of 21.0 metres or 6-storeys
iii) Density (maximum) – 245 units per hectare
(Z.-1-263405)

R9-7(81) 3680 Wonderland Road South (Block 1)

a) Regulations

i) Permitted Uses - The permitted uses of the BDC Zone variation shall be permitted within the ground floor of a mixed-use apartment building. The maximum gross floor area for the additional permitted uses shall be in accordance with the applicable regulations of Section 25.3 of Zoning By-law Z.-1. In addition to the uses prescribed in Section 13.2, Stacked Townhouses shall be permitted.

ii) Front and Exterior Yard Depth (minimum) – 1.5 metres

iii) Rear and Interior Side Yard Depth (minimum) – 6.0 metres

iv) Height (maximum) – 11.0 metres, or the lesser of 62.0 metres or 18 storeys within 85.0 metres of the northwest lot line along Wharncliffe Road South and Wonderland Road South, or the lesser of 55.0 metres or 16 storeys within 85.0 metres of the west lot line along Wonderland Road South.

v) Density (maximum) – 230 units per hectare
(Z.-1-263418)

R9-7(82) 3680 Wonderland Road South (Block 2)

a) Regulations

i) Permitted Uses – The permitted uses of the BDC Zone variation shall be permitted within the ground floor of a mixed-use apartment building. The maximum gross floor area for the additional permitted uses shall be in accordance with the applicable regulations of Section 25.3 of Zoning By-law Z.-1.

ii) Front and Exterior Yard Depth (minimum) – 1.5 metres

iii) Rear and Interior Side Yard Depth (minimum) – 1.5 metres

iv) Height (maximum) – 11.0 metres, or the lesser of 55.0 metres or 16 storeys within 85.0 metres of the west lot line along Wonderland Road South, or the lesser of 28.0 metres or 8 storeys between 85.0m to 140.0 metres of the west lot line along Wonderland Road South

v) Density (maximum) – 340 units per hectare
(Z.-1-263418)

TABLE 13.3
RESIDENTIAL R9 ZONE
REGULATIONS FOR R9 ZONE VARIATIONS

Column A			B	C	D	E	F	G	H
Line 1	RESIDENTIAL TYPE		Apartment Buildings & Special Population's Accommodations						
2	ZONE VARIATIONS		R9-1	R9-2	R9-3	R9-4	R9-5	R9-6	R9-7
3	PERMITTED USES		See Section 13.2						
4	LOT AREA (m^2) MINIMUM		1000						
5	LOT FRONTAGE (m) MINIMUM		30.0						
6	FRONT AND EXTERIOR SIDE YARD DEPTH (m) MINIMUM	LOCAL STREET	6.0	Plus 1.0 metres (3.3 feet) per 10.0 metres (32.8 feet) of main building height or fraction thereof above the first 3.0 metres (9.9 feet)					
7		ARTERIAL	8.0						
8		PRIMARY COLLECTOR	6.0						
9		SECONDARY COLLECTOR	6.0						
10	REAR YARD DEPTH (m) MINIMUM		1.2 metres (3.9 feet) per 3.0 metres (9.8 feet) of main building height or fraction thereof, but in no case less than 7.0 metres (23.0 feet) 6.0 metres (19.7 feet) plus 1.0 metres (3.3 feet) per 1.0 metre (3.3 feet) in height for all portions of a building above 6.0 metres (19.7 feet) in height where the Residential R9 Zone abuts lands zoned Residential R1 or Residential R2. (Z.1-00761)						
11	INTERIOR SIDE YARD DEPTH (m) MINIMUM		1.2 metres (3.9 feet) metres (9.8 feet) of main building height or fraction thereof, but in no case less than 4.5 metres (14.8 feet) 6.0 metres (19.7 feet) plus 1.0 metres (3.3 feet) per 1.0 metre (3.3 feet) in height for all portions of a building above 6.0 metres (19.7 feet) in height where the Residential R9 Zone abuts lands zoned Residential R1 or Residential R2 (Z.-1-00761)						
12	LANDSCAPED OPEN SPACE (%) MINIMUM		30.0						
13	COVERAGE (%) MAXIMUM		30%; plus up to 10% additional coverage, if the landscaped open space provided is increased 1% for every 1% in coverage over 30%						
14	HEIGHT (m) MAXIMUM		See Zone Map						
15	DENSITY - UNITS PER HECTARE MAXIMUM		75	85	100	115	125	130	150
16	DENSITY BONUS		1) For every 70.0 square metres (753.0 square feet) of exterior common open space provided at grade in excess of the landscaped open space required by the By-law, the density of the residential development may be increased by three units. No rounding of the square meterage provided is allowed for by this provision. Building height may not be increased to achieve the increased exterior common space. The accumulative impact of applying the Bonus provisions shall not result in a density of more than twenty-five per cent (25%) greater than the density permitted by the non-bonused site. (Excludes 120 Kent Street - Z.-1-95316)						